



PARLIAMENTARY DEBATES

OFFICIAL REPORT

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THE
PARLIAMENT OF THE REPUBLIC
OF GHANA

FIRST MEETING, 2026

Friday, 13th March, 2026

*The House met at the Chamber,
Parliament House, at 1:08 p.m.*

[HON FIRST DEPUTY SPEAKER,
MR BERNARD AHIAFOR,
IN THE CHAIR]

[PRAYERS]

ABSENCE OF THE SPEAKER

Clerk to Parliament (Mr Ebenezer Ahumah Djietror): Hon Members, may I kindly have your attention for this brief information. I would like to bring to the attention of the House, the unavoidable absence of the Rt Hon Speaker from the jurisdiction and to indicate that in accordance with Standing Order 12(2), the Hon First Deputy Speaker would resume the Chair and conduct all proceedings of the House. He would exercise the authority of the Chair until the Rt Hon Speaker resumes the Chair.

Mr First Deputy Speaker: Hon Members, the item numbered 5, *Correction of Votes and Proceedings*.

**VOTES AND PROCEEDINGS AND
THE OFFICIAL REPORT**

Mr First Deputy Speaker: I have in my hand the *Votes and Proceedings* of Thursday, 12th March, 2026 for correction.

Page 1...8—

Yes, Hon Member?

Dr Fred Kyei Asamoah: Mr Speaker, on the page numbered 6, the item numbered 4(4), Mr Charles Akwasi Agbeve, Member of Parliament (MP) for Agotime-Ziope was present here and he has been marked absent. I have also double-checked with him as well.

Mr First Deputy Speaker: Very well. Table, take note.

Page 8—

Yes, Hon Member?

Dr Gideon Boako: Mr Speaker, on the page numbered 7, the item numbered 4(12). I, Gideon Boako, MP for Tano North was present yesterday, but I have been marked absent.

Mr First Deputy Speaker: Very well. Table Office, take note.

Page 8...11—

Yes, Hon Member?

Mr Rockson-Nelson Etse Kwami Dafeamekpor: Mr Speaker, thank you. Mr Speaker, on the page numbered 11, the item numbered 10, the paragraph numbered 2. In getting Mr Speaker to withdraw the referral made last year on 5th November, I indicated the reasons for making that prayer. I indicated that the agency in question is under the Ministry of Lands and Natural Resources and that appears to be missing. So, if you take the information—

Mr First Deputy Speaker: The reasons will be captured in the *Official Report* and not in the *Votes and Proceedings*.

Mr Dafeamekpor: Mr Speaker, but I believe that it is so fundamental that, somebody may question the request for the withdrawal of the referral. I thought that it would feature—

Mr First Deputy Speaker: Because mostly, this one captures the decisions. It is the *Official Report* which is the verbatim translation of whatever happened in Parliament—

Page 12— Yes, Hon Member?

Prof Kingsley Nyarko: I was on my feet when we turned to the page numbered 11. I have a minor observation. The word “Initiating” could be made to start with a small letter “i” at the item (j) (i), the last line, which reads: “before Initiating New Projects...”.

Thank you.

Mr First Deputy Speaker: Table, kindly take note.

Page 12, 13?

Hon Members, the *Votes and Proceedings* of Thursday, 12th March, 2026, as corrected is hereby adopted as the true record of proceedings.

Hon Members, no *Official Report* is ready for the day, I will therefore invite the Chairperson of the Business Committee to present the Business Statement for the ensuing week.

Mr Dafeamekpor: Mr Speaker, the Chairperson of the Business Committee is not immediately available. I pray that I take this on his behalf.

Mr First Deputy Speaker: Yes, Second Deputy Minority Whip?

Mr Jerry Ahmed Shaib: Mr Speaker, we are not opposed; it is a matter we are all very much aware of.

Mr First Deputy Speaker: Yes, you have the floor.

1:18 p.m.

BUSINESS OF THE HOUSE

Majority Chief Whip (Mr Rockson-Nelson Etse Kwami Dafeamekpor) on behalf of the Chairperson of the Business Committee: Mr Speaker, thank you very much.

The Committee met yesterday, Thursday, 12th March, 2026, and arranged Business of the House for the Seventh Week ending Thursday, 19th March, 2026.

Mr Speaker, the Committee accordingly submits its report as follows:

Arrangement of Business

Formal Communications by the Speaker

Mr Speaker, you may read any available communication to the House.

Question(s)

Mr Speaker, the Business Committee has scheduled the following Ministers to respond to Questions asked of them during the Week:

	<u>No. of Question(s)</u>
i. Minister for Energy and Green Transition	10
ii. Minister for Food and Agriculture	6
iii. Minister for Roads and Highways	10
iv. Minister for Fisheries and Aquaculture	1
v. Minister for Foreign Affairs	2
Total Number of Questions	<u>29</u>

Mr Speaker, in all, five (5) ministers are expected to attend upon the House to respond to twenty-nine (29) Questions during the Week. The Questions are of the following types:

- i. Urgent – 2; ii. Oral – 27

Statements

Mr Speaker, pursuant to Order 91(2) of the Standing Orders of Parliament, Ministers of State may be permitted to make Statements on Government policy. You may also admit Statements by Hon Members in accordance with Order 93.

Guidelines on Making Statements

Mr Speaker, the Business Committee is reminding Hon Members on the guidelines in making Statements and has once again attached the “Guidelines for

making Statements”. The Committee further proposes that a maximum of four Hon Members may comment on a Statement, and each Member may comment on a Statement for a period not extending five minutes in accordance with Order 93(5). This is to enable the House clear the backlog of Statements.

Mr Speaker, we continue to receive Statements from Members that appear to breach guidelines that the Committee or the House have fashioned. So as a result, we have exhibited a copy of the guidelines underpinning how Statements should be presented by Members. So that is attached for Members’ guide and consideration.

Bills, Papers and Reports

Mr Speaker, in accordance with Order 159, Bills may be presented to the House for First Reading. However, those

of urgent nature may be taken through the various stages in a day, in accordance with Order 160.

Pursuant to Order 97, Papers may be laid during the week and reports from Committees may also be presented to the House for consideration.

Motions and Resolutions

Mr Speaker, there are some Motions that are pending. Motions may be debated and their consequential Resolutions, if any, taken during the week.

Referrals at Committees

Mr Speaker, the Business Committee is again publishing referrals at Committees and urges Leadership of Committees to prioritise consideration of the referrals and report to the House in accordance with Order 267(4).

In view of this, Mr Speaker, an updated breakdown of referrals at Committees has been attached for the attention of Leadership and Members of the respective Committees. A total of two hundred and ninety-seven (297) referrals has been assigned to twenty-four (24) Committees for consideration and report to the House.

Mr Speaker, there are as many as 297 referrals before Committees; substantive Committees and Ad Hoc Committees, therefore, in pursuance of Order 267(4), we are urging the Leadership of the House and Committee Leadership to endeavour to consider these referrals with some alacrity, especially when

tentatively the House may be bringing this Meeting to a close by the 27th of this month. So, we just have barely about two weeks to deal with these matters, and it is a major concern. So, we are urging the House to try and consider these referrals with some speed.

Public Holiday

Mr Speaker, Eid al-Fitr tentatively falls on Friday, 20th March, 2026, and as such the day will be observed as a public holiday. If that is so declared, then Friday, a week from today, will be a public holiday and same will be observed by all of us.

Mr Speaker, the Business Committee takes this opportunity to wish Hon Members a happy Eid al-Fitr as the Ramadan comes to a close and also pray that Allah answers all our prayers.

Conclusion

Mr Speaker, in accordance with Order 216(2) and subject to Order 67, the Committee submits to the House the order in which the Business of the House shall be taken during the week.

Monday, 16th March, 2026

Roll Call

National Pledge

Statements

(a) **Dr Zanetor Agyeman-Rawlings (Klottey-Korle):** To make a Statement on the Need for Affordable Staff

Cafeteria Facilities within Corporate and Institutional Premises to Promote Urban Order, Worker Welfare and Security Compliance.

(b) **Mr Vincent Ekow Assafuah (Old Tafo):** To make a Statement on the Maintenance Culture of All Stadia in Ghana.

(c) **Ms Gizella Tetteh-Agbotui (Awutu Senya West):** To make a Statement on the Brutality Meted Out to OSTECH Students in the 2026 Interschool Sports Festival.

(d) **Mr Desmond De-Graft Paitoo (Gomoa East):** To make a Statement on World Wildlife Day 2026.

(e) **Ms Abila Dzifa Gomashie (Ketu South):** To make a Statement in Commemoration of International Mother Language Day.

(f) **Mr Alhassan Umar (Zabzugu):** To make a Statement on the Urgent Need to Address Deceptive Warranty Practices and Strengthen Consumer Rights Protection in Ghana.

(g) **Ing. Surv. Maxwell Kwame Lukutor (South Tongu):** To make a Statement on the Deteriorating State of the Sogakope Bridge and the Urgent Need for Comprehensive Maintenance and Rehabilitation.

(h) **Ms Emelia Ankomah (Upper Denkyira East):** To make a Statement on the International Day of Zero Tolerance for Female Genital Mutilation.

(i) **Dr Mohammed Sherif Abdul-Khaliq (Nanton):** To make a Statement on Emergency Care Deficit in Ghana.

(j) **Mr Misbahu Mahama Adams (Mion):** To make a Statement on Leveraging Local Player Inclusion for National Football Development ahead of the FIFA World Cup 2026.

Urgent Questions

(a) **Mr Tanko Mustapha Amadu (Bia West):** To ask the Minister for Energy and Green Transition what specific measures have been implemented to address the persistent power supply challenges in the Bia West Constituency.

Questions

***304. Prof Kingsley Nyarko (Kwadaso):** To ask the Minister for Energy and Green Transition what processes the Ministry has initiated to increase the green energy component of the Ministry.

***670. Mr Emmanuel K. Ntekuni (Pru West):** To ask the Minister for Energy and Green Transition the plans of the Ministry to expand electricity connection in the following communities: (i) Prang (ii) Abua (iii) Adjaraja – Beposo (iv) Fawoman (v) Dama-Nkwanta (vi) Abeasi (vii) Komfuorkrom (viii) Zabrama (ix) Yawpare (x) Benim (xi) Cherambo and Kamanpa.

***392. Mr Michael Kwasi Aidoo (Oforikrom):** To ask the Minister for Energy and Green Transition what steps

have been taken to investigate the claims of foreign traders and political actors manipulating the laycan schedule and how the Ministry intends to safeguard the integrity of the petroleum supply chain of Ghana.

***462. Mr Akwasi Gyamfi Onyina-Acheampong (Kwabre East):** To ask the Minister for Energy and Green Transition what other measures are being put in place to get funds to solve the energy sector problems following the suspension of the implementation of the GH¢1 per litre energy sector levy.

***463. Mr Anthony Mmieh (Odotobri):** To ask the Minister for Energy and Green Transition when the ministry will release supplies for the completion of the electrification projects which have come to a standstill since December 2024 in the following communities in the Amansie Central District: (i) Sabe No1 (ii) Sabe No2 (iii) Mamfo (iv) Odumfo (v) Adwease No1 (vi) Adwease No2 (vii) Mile 18 (viii) Amanfo Aniawu (ix) Ntweaso (x) Sundantoa (xi) Aworasa (xii) Aduntia (xiii) Yaw Krakom (xiv) Ntonntom (xv) Apaho.

***541. Mr Issah Salifu Taylor (Tarkwa/Nsuaem):** To ask the Minister for Energy and Green Transition when the Ministry will provide additional transformers to Tarkwa Nsuaem to replace the 33 damaged units due to overloaded transformers.

***626. Mr Nelson Kofi Djabab (Krachi East):** To ask the Minister for

Energy and Green Transition when the following communities in the Katanga Islands of the Krachi East Municipality will be connected to the national grid: (i) Ativikope (ii) Tumikpe (iii) Pai-old Town (iv) Sikape (v) Atafiam

***651. Mr Kofi Arko Nokoe (Evalue-Ajomoro-Gwira):** To ask the Minister for Energy and Green Transition when the Gas Re-bottling plant in the Evalue-Ajomoro-Gwira will be completed.

***653. Mr Sanja Nanja (Atebubu/Amantin):** To ask the Minister for Energy and Green Transition what measures the Ministry is implementing to deal with the shortage of electricity metres in the country.

Presentation of Papers

(a) Budget Performance Report of the Ministry of Roads and Highways for period January to December 2025

Motions

Committee Sitzings

Tuesday, 17th March, 2026

Roll Call

Statements

Urgent Questions

(a) **Mr Eric Edem Agbana (Ketu North):** To ask the Minister for Food and Agriculture what plans the Ministry has for the Weta irrigation project.

Questions

***398. Mr Richmond Edem Kofi Kpotosu (Ho Central):** To ask the Minister for Food and Agriculture the plans of the Ministry to protect food as a buffer to support Ghanaians in times of any pandemic that would prevent the importation of food items.

***427. Mr Kwame Dzudzorli Gakpey (Keta):** To ask the Minister for Food and Agriculture how many metric tonnes of fertilisers were purchased from 2017–2024, the total cost and how it was distributed.

***432. Mr Kwame Dzudzorli Gakpey (Keta):** To ask the Minister for Food and Agriculture how many tractors were imported from 2017 to 2024 and how they were allocated across the country.

***681. Mr Emmanuel Kofi Ntekuni (Pru West):** To ask the Minister for Food and Agriculture the plans the Ministry has for the establishment of a farmer service centre in Pru West Constituency, considering that the constituency typically runs on an agrarian economy.

***714. Mr Anthony Mmieh (Odotobri):** To ask the Minister for Food and Agriculture what irrigation or mechanisation interventions have the Government implemented or planned for Amansie Central District to improve agricultural productivity and food security.

Presentation of Papers

Motions

Committee Sittings

Wednesday, 18th March, 2026

Roll Call

Statements

(a) Ms Emelia Ankomah (Upper Denkyira East): To make a Statement on the International Day of Women Judges.

Questions

***600. Alhaji Alhassan Mumuni (Salaga North):** To ask the Minister for Roads and Highways the plans of the Ministry to construct the following roads: (i) Kpalbe – Kushini – Nyeshla – Gbeteni Road (ii) Nyashila – Zankum – Chongashie road.

***641. Mr Ebenezer Alumire Ndebilla (Zebilla):** To ask the Minister for Roads and Highways when the following Roads will be constructed: (i) Tilli – Binaba (ii) Kobore – Sapeliga (iii) Zebilla Custom Barrier – Widnaba.

***642. Mr Tweneboah Kodua Fokua (Manso Nkwanta):** To ask the Minister for Roads and Highways why the rehabilitation of Trabuom–Nweneso No. Road (0.00 – 16.00km) and the Trabuom by-pass (0.90km), which is an addendum to the rehabilitation of Mankraso Junction – Tepa Road, has not

progressed and the contractor has left the site.

***662. Mr Issah Atta (Sagnarigu):** To ask the Minister for Roads and Highways the status of the reconstruction of the Sagnayoli – Gurugu area roads in the Sagnarigu Municipality Phase 1 (5.83km) and when the contractor will resume work on the deteriorating roads.

***665. Mr Stanley Yaw Nandaya (Wulensi):** To ask the Minister for Roads and Highways the plans of the Ministry to salvage the metal bridge at Egambo in the Wulensi Constituency which has eroded due to torrential rains.

***666. Mr Simon Akibange Aworigo (Navrongo Central):** To ask the Minister for Roads and Highways when the Gumongo–Manyoro– Natugnia road/bridges will be attended to.

***668. Nana Osei Adjei (New Juabeng North):** To ask the Minister for Roads and Highways when the only traffic light in the New Juaben Constituency will be fixed.

***669. Mr Elvis Osei Mensah Dapaah (Ahafo Ano South West):** To ask the Minister for Roads and Highways the progress of work on the Domeabra inner roads.

***703. Ms Lawrencia Dziwornu (Akuapem South):** To ask the Minister for Roads and Highways the current status of the Kitase-Dome Road in the Eastern Region and what plans as well as timelines the Ministry has put in place to

ensure the timely construction of the road.

***704. Mr Mohammed Issah Bataglia (Sissala East):** To ask the Minister for Roads and Highways the status of work on the following roads in the Sissala East constituency: (i) Wallembele – Sakai – Tumu (ii) Tumu – Challa – Tarsor – Bugubelle (iii) Kunchogu–Kwapung – Wuru.

Presentation of Papers

Motions

Committee Sitings

Thursday, 19th March, 2026

Roll Call

Statements

Urgent Questions

(a) Dr Isaac Yaw Opoku (Offinso South): To ask the Minister for Fisheries and Aquaculture Development what measures the Ministry has put in place to prevent the use of unapproved and harmful preservatives including the use of formalin for the preservation of fish and fish products to ensure that fish and fish related products on the market are safe for human consumption.

Questions

***608. Mr Samuel A. Jinapor (Damongo):** To ask the Minister for Foreign Affairs when the Government intends to lay before the House the full

text of the Agreement or Memorandum of Understanding between Ghana and the United States of America to receive third-country deportees, including any legal, financial or logistical commitments and why Parliament and the people of Ghana only learned of it through the media.

***609. Mr Samuel A. Jinapor (Damongo):** To ask the Minister for Foreign Affairs why the Government is implementing an Agreement or a Memorandum of Understanding (MoU) with the United States of America to receive third-country deportees, even though the said Agreement and MoU have not been ratified by Parliament in accordance with Article 75 of the 1992 Constitution and the case of *Banful v Attorney-General* (2017-2020) SCGLR 82.

Presentation of Papers

Motions

Committee Sittings

Friday, 20th March, 2026

National Holiday – Eid al-Fitr.

Mr First Deputy Speaker: Hon Members, the Business Statement has been presented. It is now time for comments. Yes, Hon Kingsley Nyarko?

Prof Kingsley Nyarko: Mr Speaker, thanks for granting me the space to make a few observations regarding the Business Statement read by our Majority Chief Whip.

Mr Speaker, regarding guidelines on making Statements, I mean the Business Committee can provide guidelines to guide us. My only concern is that if we are able to abide and operate within the times within which we are to run our Business, these restrictions would not be necessary. This is because yesterday, we adjourned the House to 12:00 noon of today. We began proceedings after 1:00 p.m. So, one hour is gone and my bone of contention is that it seems to me that the issue has to do with how we do not respect time of commencement of Business. Otherwise, these guidelines that restrict Members regarding the number of Members who are supposed to comment on Statements will not be necessary. So please, Business Committee and Leadership, let us operate within the time. The Members will have the liberty to also express their views and opinions on matters. For me, these restrictions are not helpful.

Mr Speaker, again, we are adjourning on Thursday. We have a lot of backlogs of Statements and Questions, that is why we are also sitting on Mondays; but we have only 29 Questions. On Thursday, we are having only three Questions, but we have a lot of Questions. So, Business Committee, we plead with you, let us increase the number of Questions so that we can deal with them expeditiously than to let us come to work on Monday when ordinarily, Mondays are not meant for Sittings. We are dealing with only 29 Questions within the week. We can do more, please. So, this is a special request to you for us to work. I enjoy working in the House; we want to work. There are a lot of Questions that I have that are

outstanding that I need to ask to the benefit of my constituents and the entire nation. Mr Speaker, thanks for indulging me and these are my few observations before the Business Committee.

Nana Asafo-Adjei Ayeh: Mr Speaker, I want to also commend the Business Committee for such lucid work. I only want to take the House back to the guideline for making Statements; font and length size. I read:

“a statement should be typed using a font size of 14 and double-spaced. A statement should not exceed two pages...”.

Mr Speaker, we have been here and a number of Statements have been read on the Floor. Some of them go beyond three to four pages. I do not know if we are still adhering to— I had to even question a Colleague who dropped his Statement for me to comment, that the Statement does not fall within the guidelines that have been given. I do not know if the Clerks-at-the-Table or the Whips are also looking at the provisions they have made in their own guidelines so that we can adhere to time for more Statements to be admitted and more comments can be made.

Mr First Deputy Speaker: Thank you for that observation.

Yes, Hon Charles Forson?

Mr Charles Forson: Mr Speaker, thank you. I rise to comment on the Business Statement with regard to the

template that we need to use in issuing Statements.

Mr Speaker, we are being told that we should use font size 14 and then double spacing. We will end up, instead of summarising, now go to talk about abstraction in the sense that the Statement will end up being very nebulous. If a font size of 14 and double spacing, every two-page Statement will become just a one-page Statement. But we are being told that we need to state the problem, provide possible solution, and then recommendation. How do we go about this? Instead of telling the true state of a situation, we will end up issuing a Statement which, in effect, will not be clear to the ordinary Ghanaian and we will end up not serving the interests of the good people of Ghana.

Mr Speaker, I pray that the Business Committee reconsiders this stance.

Mr First Deputy Speaker: Hon Members, on the issue of the Statements, the whole idea is for you to be brief. We were in this House when a Member, specifically Hon Anthony Mmieh, complained about the font size when Statements are uploaded, making it difficult to read. So, the guideline is influenced by certain occurrences. I have also taken note; I do not admit Statements when it is beyond two pages. I will refer it back to you. So, now that the House is rehashing it, it is incumbent upon me to ensure that any Statement beyond two pages will not be admitted. I will refer it to the Member to reduce the pages.

Yes, Dr Gideon Boako?

1:28 p.m.

Dr Gideon Boako: Mr Speaker, I agree with you, but my suggestion is that instead of limiting a Member's Statement to two pages, why do we not we commit to word count?

We can maintain our font size and the double spacing, but when we commit to word count, it serves a better purpose than saying that we have to have our Statement in just two pages. I think using word counts may be more appropriate than the two-pager thing we are talking about.

Mr First Deputy Speaker: Very well. Yes, Hon Sosu?

Dr Francis-Xavier Kojo Sosu: Thank you, Mr Speaker.

Mr Speaker, I support the argument of our Colleague. I believe that word counts may be better. The reason being that there are people who may want to use, say, font size of 14 or 16 to make it easier for them when they are presenting their Statement. That way, it could lead to more than, say, three or four pages. So, limiting it to pages may be a bit problematic. I am sure word counts can be more ideal.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Yes, Minority Leadership?

Second Deputy Minority Whip (Mr Jerry Ahmed Shaib): Mr Speaker, thank you very much for this opportunity. Let me commend my Brother, Etse, for standing in the shoes of the Majority Leader.

Mr Speaker, in recent times, we have witnessed the President, H. E. John Dramani Mahama, travelling. His latest one was to South Korea. Mr Speaker, it is very important to have the Minister for Foreign Affairs programmed to come and answer why the President has been travelling in the private jet of his brother, whether the private jet belongs to the brother, and how much the Ghanaian people are paying for the use of that private jet.

Mr Speaker, in the same domain, the same Minister has to be programmed to come and answer and tell this House the status of the promise of construction of airports in every region. The Minister promised the Ghanaian people that every region is going to benefit from the construction of airports. Mr Speaker, he has to tell us the status of those airports.

Mr Speaker, most importantly, the Minister for Foreign Affairs also said that Ghana has become a base for the American soldiers to use. This is a matter which is of serious national security risk. This was something he said at the Chatham House. He has to be programmed to come and tell us whether there was a Memorandum of Understanding (MoU) from this Parliament before same was adhered to.

Mr Speaker, finally, it is critical we programme the Minister for the Interior to also come and tell us when they are going to refund the GH¢220 to the over 500,000 Ghanaian youth, the money they took and said that they were going to use it for recruitment purposes. And GH¢1,600 taken from every applicant who had to go through medical examination. Mr Speaker, we need to respectfully programme the Minister for the Interior to come and respond to all of this.

Thank you very much, Mr Speaker, for this opportunity.

Mr First Deputy Speaker: Yes, Minority Leader?

Minority Leader (Osahen Alexander Kwamena Afenyo-Markin): Mr Speaker, my first point is on the National Communication Authority (NCA) sim re-registration. *[Laughter]* Rev Ing Edmund Yirenkyi Fianko, Director-General of National Communication Authority, says that the planned sim re-registration exercise by Government is intended to address some so-called irregularities in previous registration process. According to him, this would be the third after the 2011 exercise, which, according to him, lacked proper ID verification. Fortunately, we have a Minister with an institutional memory in this area, having served on the Committee on Information and Communications in his previous life in opposition.

Mr Speaker, I would strongly urge the Leader of Government Business to

programme the Minister for Communications, Digital Technology and Innovations to brief this House on this all-important matter. The problem is that the Majority Leadership is seen as always shielding the Ministers, and they are making the Ministers comfortable and sleeping on the job. Important policies that are supposed to come to this House, they resort to press conference, because they know that the Majority Leader and his Chief Whip shield them. This is House of Parliament. We do not use press conference. Important national matters must be announced in this Chamber. This should not be one of those issues that the Majority Chief Whip would come and defend. He should programme the Minister for Communications, Digital Technology and Innovations to come to this Chamber and tell the representatives of the people what exactly they mean, rather than the Director-General addressing the press and saying things that are supposed to be properly put.

Mr Speaker, doctors have been raising concerns about the rise in hernia cases in Ghana. *[Laughter]* Dr Godfred Owusu-Angkasa of the Methodist Faith Hospital has warned about the rising cases of inguinal hernia in Ghana, stressing that that delayed treatment often leads to complications. The Methodist Health Trust has treated over 800 patients across Ankaase, Aburaso and Apegya. The Nurse Manager, Gloria Agyeiwa Osei Boateng, also urged people to seek proper medical care and called on the National Health Insurance Scheme (NHIS) to subsidise hernia treatment.

Mr Speaker, the issue here is subsidising the treatment. We have heard of the new health fund that was the Ghana Medical Trust Fund, which was scooped out of the Health Insurance Scheme. Mr Speaker, can the Minister for Health be programmed to come and address this important matter as to whether this can also be added to the Ghana Medical Trust Fund? It is very important because there are matters that we may consider trivial, but somebody in the village who has this condition may not have the means. The issue is that it is not everything that the health insurance covers, and this is one important thing that we need a ministerial briefing on. So, the Majority Chief Whip who is now standing in for the Majority Leader should take note and programme the Minister for Health to come.

1:38 p.m.

Mr Speaker, the next issue is that the National Petroleum Authority (NPA) has given an indication of increase in price of fuel from March 16 window. Petrol is now GH¢11.57 while diesel is pegged at GH¢14.35. We are being told that because of happenings in faraway Iran — [*Uproar*] [**Some Hon Members:** Who told you?] The President said so. Mr Speaker, the President said that happenings in Iran will affect Ghana. Since when did they change their mind? Mr Speaker, he said he has instructed the Ministers for Energy and Green Transition and Finance to monitor the situation for certain adjustments to be made. According to the President, Ghana has sufficient buffers. Let us see evidence of that. If indeed we have

sufficient buffers, we do not expect any increase in fuel prices. Government must subsidise because in Akufo-Addo's era, they said the Ukraine-Russia war should not have any effect. They said it was 7,000 kilometres away and that the bombs were not been thrown in Ghana. So, Mr Speaker, we do not expect anything less. Already, they have increased electricity tariffs by almost 30 per cent. Ghanaians, are suffering.

This recruitment is also another issue. They sold forms to 506,000 when they knew that they had vacancy for 5,000 people. Then, apart from the GH¢220 per form, they are now going to charge them GH¢1,600 for medicals. So those 200,000 who qualify will go for the medicals when they know that even if all of them pass, they have vacancy for 5,000. Mr Speaker, if 100,000 have even qualified for medicals, they know they have only 5,000. So, they are going to get GH¢160 million from the poor Ghanaian youth. GH¢1,600 is the fee for medicals with transportation not included. Meanwhile, they know that the person will not have access. Why are they doing this? If even 50 per cent of them pass, that is 50,000 yet, they have only 5,000 vacancies and they are going to take GH¢1,600 from each of them.

Mr Speaker, I do not think that this is the right approach. We have been told the Minister will brief us, but he is yet to brief us. Mr Speaker, can the recruitment exercise be suspended so that these things are properly ironed out? Because the system that has been introduced, for want of a better word, is duping the youth. The youth are being duped. It is

like a scam. How can one go to a so-called Artificial Intelligence (AI) platform, one wants to go to the Immigration Service, then it asks the person what the size of a basketball court is? AI, as I know, must be programmed and internalised so that the particular purpose is achieved. You cannot be generic in the use of AI. You will not get the desired result. My Colleague, Sam George, is here. He is an Information Technology (IT) expert. He knows that area more than I do. If you want to use AI to guide the process, you put in the proper inputs. You do not generalise it and say, ask, what the size of a basketball court is. And the person wants to go to the Police or Immigration Service? Mr Speaker, no. The people are already poor. They are unemployed.

Mr Speaker, to conclude on this matter, as political leaders and Colleagues, this is not New Patriotic Party (NPP) or National Democratic Congress (NDC), but it is a threat to our democracy. If 506,000 people have actually bought forms, then political leaders, let us be careful. If 500,000 youths are unemployed and they bought forms with the expectation of getting access, then let us be careful. Because 50,000 alone on the streets, we cannot contain. Let us begin to use this as a trigger or an early warning to formulate policies that would help transform the country and stop the usual partisan politics. Government must come up with programmes that will create jobs. We on this Side are ready to help them. But they must help themselves. We do not want social media Ministers. We want Ministers who would commit to

introducing policies and implementing them with the aim of creating jobs. The 506,000 that we have seen is a security threat to democracy if we have not paid attention. Five thousand is a serious security threat.

Mr Speaker, I will conclude on a major concern about our cocoa farmers. The Majority Leader three weeks ago promised this House that the Minister will come and brief this House on the cocoa situation. Farmers continue to suffer because of this haircut. The Minister sat in his Ministry to address the press. He did not tell us the market volatility, the effect on the farmers and how much it was going to cost government to subsidise. We are already aware of the GHC7 billion losses at GOLDBOD as reported by International Monetary Fund (IMF). It is not opposition report. It is the IMF saying that as at end of year, GOLDBOD transaction losses amounted to GHC7 billion. We should be concerned. That is what IMF is saying. So, if we cannot address some of these things, then we are in difficulty. We are in a very serious situation.

Mr Speaker, our soldiers in Lebanon — We know that the Minister for Finance is the acting Minister for Defence. He should find time to brief this House. People have left their families to go on peacekeeping and they are being bombarded. They do not know about their safety and this Government has not found space to address Parliament on this important national issue. So, it remains a social media matter. It must not continue like this. The Minister for Defence must

be programmed to come and brief us about the situation of Ghanaian soldiers on peacekeeping in Lebanon. It is very important he does that with all the urgency. We cannot allow that to be another gallery talk. Mr Speaker, that said, I would want the Majority Chief Whip to come and respond to some of these issues so that I take him to the next round of issues. Thank you so much.

Mr Dafeamekpor: Mr Speaker, I thank you for the opportunity to respond to some concerns raised by Members but I will be guided within the terms of Order 216 of our Standing Orders in responding to the issues raised that is issues that pertains to the content of the Business Statement I presented to the House.

Mr Speaker, in doing so, let me touch on the issue raised by Prof Kingsley Nyarko. We are all concerned regarding the presence of Members when it is time for us to commence Business. Ever often, the Speaker is ready. The Speaker gets ready by 11:30 a.m. if Sitting is adjourned to commence at midday. It is just Members whose unavailability makes it difficult for him to start exactly at 12 noon.

1:48 p.m.

Anytime a Sitting is adjourned to 2 p.m. by 1:30 p.m., Mr Speaker is ready to hold a Conclave. Again, it is our numbers that prevent him from starting exactly at 2 p.m. So, Colleagues, this goes to us. If we are ready at 12 noon, Mr Speaker will start exactly at 12 noon. If

we are ready at 2 p.m., Mr Speaker will start at 2 p.m. So, let us consider this.

The question with respect to the guidelines for Statements that we should move away from limiting the length of the Statement to two pages, to dealing with word count and also the font size. Well, it is a suggestion that the Business Committee will consider, Mr Speaker. We will look at it. Hon Asafo-Adjei also joined him in speaking about the limitations that the guidelines impose, and also proposed that we look at the font size. That will be looked at. Then, of course, Charles Forson, Dr Boako and Dr Sosu also joined him. So, it is all about whether we should rely on word count to measure the length of the Statement or we should limit it to the number of pages. So, that will be considered.

Now, the Second Deputy Minority Whip is requesting that the Minister for Foreign Affairs be invited to speak to some foreign travels by the President. Mr Speaker, I am unable to respond positively to that because it is not an issue that the Business Committee considered. In any case, we have already provided for Ministers to come and make Statements. So, if this is the sense of the House, I believe that will be accommodated by that provision.

Mr Speaker, again, Hon Jerry Shaib speaks of the supposed promise by the Minister for Foreign Affairs to build airports. I do not think that any such promise was made. So, I am unable to speak positively that he promised to build airports in every regional capital. I do not recall that. He then made a

suggestion on whether the security services will refund moneys paid by applicants who have applied to be recruited into the security services as part of the ongoing recruitment exercise. I believe that it is a suggestion that somebody made. But I do not see how this House can give that directive. That is a matter for the security agencies to consider or otherwise.

Mr Speaker, the Minority Leader came in with a plethora of issues, issues that have no relationship at all with the content of the Business Statement. These are Friday politics, therefore, I am unable to speak to them except to say that where he is requesting for the Ministers to come and brief the House, that has already been adequately catered for. And so, within the ensuing week, we may make provision for Ministers to come and brief the House on matters that the House finds pertinent and important to be briefed on.

Mr Speaker, save that, it is a matter of record that the Public Utilities Regulatory Commission (PURC) has announced a reduction in utilities from the first day of April, 2026. I am also not aware that utilities have been increased and that any announcement has been made by the utility providers.

On this note, Mr Speaker, I believe that I have responded adequately to all the issues raised that have some relationship with the Business Statement as presented.

Mr First Deputy Speaker: Yes, Hon Minority Leader. Kindly be brief.

Osahen Afenyo-Markin: On the very last issue, Mr Speaker, the Pre-Tertiary Teachers Association of Ghana (PRETAG), this week, expressed a concern over delays in placing teachers recruited since September 2023 and 2024, on national scale salary, leaving some owing as much as 10 to 14 months of arrears.

Mr Speaker, according to the PRETAG president, King Ali Awudu, he questioned why teachers have not received a clear payment plan, unlike nurses recruited during the same period. And he also rejected claims that teachers lack financial clearance, stating that approval existed and has since been renewed. Meanwhile, the Ghana Education Service (GES) has warned teachers against picketing during working hours and advised them to use official channels to address their concerns.

Mr Speaker, I am happy to see my big Brother, the Hon Minister for Education, in the Chamber. I think this is an opportune time for the Majority Leader to programme him to fully brief us on this situation. He cannot use administrative fiat to deny somebody his constitutional *bona fide*. That the right to picket is being denied to teachers. That he is issuing threats. The Director General of GES has forgotten that the Minister is also a lawyer who practices in the area of human rights, and a constitutional *bona fide* is being denied? This is unacceptable, and the Minister would have to come and brief us on this matter.

Mr Speaker, if the nurses are getting better treatment by way of their arrears, why can he not do the same for teachers? The Minister is only telling the media that, as for him, he is there. If he is there, he does not have a problem; the problem is the Minister for Finance. He needs to reconcile. He sits with him at Cabinet. He just came, so we will spare him and not put too much pressure on him. But the teachers need clearance. The Hon Minister should put pressure on the Minister for Finance. He is his junior Brother. He should tell him to approve the recruitment. It is not enough to tell the media that it is not his responsibility. That is unacceptable.

I am sorry, today is his first day at work, but we need to do our job. The teachers are suffering. Yes, of course, we all know the situation, and we wish him well. He is our Brother.

Mr Speaker, we need the teachers to be employed. They need to be recruited. Is it a sin to train as a teacher? Did they not promise employment? And all that the Minister says is that the Minister for Finance has not given clearance. He sits with him at Cabinet. He should engage him and get him to give clearance. Instead of paying attention to the critical issues in the economy, they are fighting over who will succeed President Mahama.

Mr First Deputy Speaker: Hon Members, the Business Statement as presented is hereby adopted.

Yes, Majority Chief Whip, any indication here?

Mr Dafeamekpor: Mr Speaker, may I pray for the variation of the order of Business to take the Motion numbered 47?

1:58 p.m.

Osahen Afenyo-Markin: Mr Speaker, we have no objection.

Mr First Deputy Speaker: Yes, Minister for Education, the Motion numbered 47.

BILL — SECOND READING

Education Regulatory Bodies (Amendment) Bill, 2026

Minister for Education (Mr Haruna Iddrisu): Mr Speaker, let me thank you for the opportunity.

Mr Speaker, with your indulgence, I beg to *move*:

That the Education Regulatory Bodies (Amendment) Bill, 2026 be now read a Second time.

Mr Speaker, in doing so, I wish to draw attention to the fact that the Education Regulatory Bodies Act, 2020 (Act 1023) made Charter compulsory for private universities in Ghana. In the past, historically, under the erstwhile National Accreditation Board, a Charter has never been compulsory. It has always been optional.

Mr Speaker, the Government recognising the contribution of private tertiary institutions in the country,

numbering over 79, has made a significant contribution to the provision of higher education in Ghana and quality education across the country. Forcing all these institutions to charter, as it appears in the current Ghana Tertiary Education Commission (GTEC) Act (Act 1023), may lead to the collapse of some 79 private institutions who do not have the capacity to stand on their own, as affirmed by the Ghana Tertiary Education Commission. That probably can even increase our current unemployment situation and become a disincentive for Ghanaians who want to contribute to the development of the country by investing in the provision of quality tertiary education at the private level.

Mr Speaker, let me assure this House that, as the President observed in his Message on the State of the Nation, the intendment of this is to make Charter optional in Ghana. So, if an institution subject to mentoring thinks that they have satisfied the requirement and can bid on their own, they may request to be chartered, which will allow them to award their own degrees, diplomas and other related qualifications.

Mr Speaker, from institutional and programme accreditation undertaken by GTEC, academic audit is a significant part of what GTEC does, in addition to quality assurance layer, which was removed by GTEC. When this Charter is reintroduced to ensure the continuous quality assurance of all institutions that may not have chartered.

Mr Speaker, policy approval of programmes that have been reserved for

only public chartered institutions will now be extended to private institutions to ensure that their programme introduced align with government policy objectives.

Mr Speaker, the Government of Ghana recognises private tertiary institution providers as significant stakeholders and partners in enhancing access to quality higher education in Ghana. The tertiary education landscape in Ghana has significantly transformed over the past three decades, with the dynamic growth of private tertiary institutions.

Mr Speaker, we just did not arrive at this. There was an Ansah Asare Committee report that made recommendations for us to de-charter, and consequently, we sought cabinet approval for the Education Regulatory Bodies (Amendment) Bill, 2026 to be presented to Parliament to make Charter optional.

I so submit and urge Hon Colleagues to support this amendment so that we can safeguard the investment that many other Ghanaians have made in the provision of tertiary education by way of private universities and investment in them. There are many Ghanaian students who, otherwise, but for this opportunity, would not have been able to taste higher education.

I so move, Mr Speaker.

Mr First Deputy Speaker: Hon Members, Motion ably moved by the Minister for Education and it is now the time for the Chairperson of the Committee on Education to present the

Report of the Committee. But before doing so, permit me to acknowledge the presence of visitors.

In our midst, we have Stevehills International School. They are from the Lower Manya Krobo and are 58 in number. They are led by Mr Kenneth Odame who is a grade school coordinator.

[Pupils of Stevehills International School were acknowledged.]

Mr First Deputy Speaker: We also have students from the Anlo Afiadenyigba Basic School, led by Mr Owusu Moses, a teacher. They are from Keta, and are 59 in number.

[Pupils of Anlo Afiadenyigba Basic School were acknowledged.]

Mr First Deputy Speaker: We have students from the Supreme Preparatory and Junior High School, led by Mr Brian Sackey, the headteacher. They are from Anyaa-Sowutuom, and 65 are in number.

[Pupils of the Supreme Preparatory and Junior High School were acknowledged.]

Mr First Deputy Speaker: We also have pupils from Vision Academy, Obogu, led by Mr Daniel Oppong, a teacher. They are from Asante-Akyim South and are 12 in number.

[Pupils of Vision Academy, Obogu, were acknowledged.]

Mr First Deputy Speaker: We also have students from the Holy Trinity Lutheran School, led by Kouzougbe Amevo, a teacher. They are from Nhyiaeso, and are 33 in number.

[Pupils of Holy Trinity Lutheran School were acknowledged.]

Mr First Deputy Speaker: Hon Members, I have the pleasure to introduce to you Hon Senator Dr Isaac Maigua Mwaura, the Government Spokesperson of the Republic of Kenya, who is on a one-week working visit to Ghana.

The Distinguished Hon Senator is a leading advocate for disability inclusion. He is in Ghana to interact with the Parliamentary Caucus on Disability, to exchange perspectives on inclusive governance, disability legislation and regional collaborations. The visit also presents a unique opportunity to strengthen Ghana-Kenyan relations and deepen legislative dialogue on disability inclusion across Africa. The Hon Senator is accompanied by Mr Andrews Kwame Daklo, Advocacy Manager, African Albinism Network.

Hon Members, on your behalf, I wish him a pleasant stay in the country and fruitful deliberations. Once again, Hon Senator, you are welcome.

Now, Chairperson of the Committee, you may present the Report of the Committee.

Chairperson of the Committee (Mr Peter Kwasi Nortsu-Kotoe): Mr Speaker, in presenting the report of the Committee, I want to state that the Minister has outlined many of the issues we want to present.

Introduction

The Education Regulatory Bodies (Amendment) Bill, 2026 was presented to the House and read the First time on Wednesday, 4th February 2026 by the Hon Deputy Minister for Education, and Member for Builsa South, Dr Clement Abas Apaak, on behalf of the Hon Minister for Education, Hon Haruna Iddrisu, pursuant to Article 106(4) and (5) of the 1992 Constitution of the Republic of Ghana.

The Bill was subsequently referred to the Committee on Education for consideration and report in accordance with Order 165 of the Standing Orders of House.

Acknowledgment

The Committee expresses its gratitude to the Hon Minister for Education, Mr Haruna Iddrisu; the Hon Deputy Minister for Education, Dr Clement Abas Apaak; officials of the Ministry of Education, the Office of the Attorney-General and representatives of Ghana Tertiary Education Commission (GTEC) and Private Universities Founders Association (PUFA).

Reference Documents

The Committee referred to the following documents during its deliberations:

- i. The 1992 Constitution of Ghana.
- ii. The Standing Orders of the Parliament of Ghana.
- iii. The Education Act, 2008 (Act 778).
- iv. The Education Regulatory Bodies Act, 2020 (Act 1023).
- v. The State Lands Act, 1962 (Act 125).

Background

The tertiary education landscape in Ghana has transformed significantly over the past three decades by the dynamic growth of private tertiary institutions. These institutions have helped expand access to higher education, contributed to human capital development, introduced innovative programmes and reduced the financial burden on the State.

Prior to the enactment of the Education Regulatory Bodies Act, 2020 (Act 1023), the practice for the grant of Charters was that, an accredited institution could apply for a Charter where it had successfully operated under the supervision of a mentoring institution for a period of not less than ten years. The ten-year mentorship period served

as a quality assurance mechanism and provided the medium for new institutions to mature under the guidance of established universities while ensuring stability, adherence to academic standards and proper governance before attaining full autonomy.

The passage of Act 1023 made it mandatory for all existing affiliated institutions to secure a Charter within a period of six years after the passage of the Act. This mandatory requirement has created a practical challenge for private institutions, which may not be able to meet this deadline due to the high cost of fees payable to the Ghana Tertiary Education Commission, which requires them to demonstrate a substantial financial reserve and show proof of the existence of physical structures. The problem becomes more pronounced where smaller institutions and institutions that are mission driven are unable to meet the deadlines for marshalling these reserves in fulfilment of the requirements under Act 1023. There is no doubt that these institutions are already considered to be struggling with the payment of affiliation fees to mentor institutions; the chartering process, therefore, presents an even larger financial hurdle.

This problem is worsened due to the upcoming deadline for Charter, which is this year, creating a climate of anxiety and uncertainty for these private institutions. Failure to meet the deadline means that affiliated institutions cannot continue to operate with their affiliated status.

The proposed amendment to Act 1023 seeks to dispense with the requirement for affiliated institutions to acquire a Charter by August, 2026, which is the deadline envisaged in Act 1023 and provide a more flexible, optional pathway to chartering.

Object of the Bill

The object of the Bill is to amend the Education Regulatory Bodies Act, 2020 (Act 1023) to dispense with the requirement of affiliated institutions to meet the six-year requirement to obtain a Charter.

Summary of the Clauses of the Bill

Clause 1 of the Bill amends paragraphs (b) and (c) of subsection (1) of section 11 of the Act by increasing the number of Vice-Chancellors to be appointed to the governing body of the Commission to two. The clause also substitutes the head of a chartered private university with a founder of a private tertiary educational institution as a member of the governing body of the Commission.

Clause 2 amends section 19 of the Act by introducing a new provision on the types of accreditations that may be granted by the Commission to a tertiary education institution.

Clause 3 amends section 22 of the Act to provide for the effect of accreditation. Under the clause, a tertiary education institution that has been granted accreditation must be a body corporate. The tertiary education

institution is also empowered after the grant of an accreditation to establish campuses and constituent colleges in conformity with standards prescribed by Regulations made under Act 1023 and award degrees in partnership with mentor or partner institutions. The clause further prohibits a constituent college and campus from sharing its premises with an incompatible business.

Clause 4 repeals section 27 of the Act.

Clause 5 amends section 38 of the Act by substituting the definition of “tertiary education institution” to include other forms of institutions for which accreditation may be granted.

Finally, Clause 6 amends section 40 of the Act by substituting subsection (1) and repealing subsection (2) of that section of the Act. The new provision rather gives an affiliated institution the opportunity to request to be granted a Charter after the affiliated institution meets the criteria for the award of a Charter in accordance with the Act.

Observations

Institutional Charter, Autonomy and Quality Assurance

The Committee observed that the tertiary education landscape in Ghana has witnessed remarkable transformation through the proliferation of private tertiary institutions. While these institutions have commendably expanded access to higher education and reduced the financial burden on the State, the

current mandatory chartering regime under Act 1023 presents a fundamental tension between institutional autonomy and quality assurance.

The Committee noted that the existing ten-year mentorship period, prior to Act 1023, served as a critical quality assurance mechanism, providing the necessary scaffolding for new institutions to mature under the guidance of established universities. This period ensured stability, adherence to academic standards, and proper governance before the grant of full autonomy.

However, the mandatory six-year chartering requirement introduced by Act 1023 has created, in the Committee's considered view, an impractical and potentially counterproductive deadline.

The Impending Chartering Deadline under Act 1023

The Committee noted with serious concern the impending August 2026 deadline for chartering under Act 1023. The deadline has created a climate of anxiety and uncertainty within the private tertiary education sector.

The Committee finds it untenable that institutions operating under approved affiliation arrangements for years may be compelled to shut their doors simply because they cannot marshal the required financial resources within a limited timeframe. Such an outcome would disrupt the education of thousands of Ghanaian students, undermine the national goal of equitable access to tertiary education, potentially

lead to job losses for academic and administrative staff, and contradict the State's constitutional obligation to ensure progressively free and accessible education.

Financial Sustainability and Institutional Viability

The Committee noted with concern the financial implications of the current mandatory chartering regime. Smaller institutions, particularly mission-driven and faith-based institutions, will face disproportionate challenges in meeting the chartering requirements. These challenges include substantial fees payable to the Ghana Tertiary Education Commission, the requirement to demonstrate significant financial reserves, proof of existence of permanent physical structures, and the cumulative burden of ongoing affiliation fees to mentor institutions.

The Committee further noted that institutions already struggling with affiliation fees may be confronted with an even greater financial hurdle in the chartering process. The Committee observed that this situation could create a paradox where the very institutions serving marginalised and underserved communities risk discontinuing their operations due to regulatory requirements.

The Principle of Regulatory Flexibility

The Committee strongly endorses the philosophical shift underpinning the proposed amendment, thus moving from a rigid timeline-driven mandate to a flexible quality-focused framework. The removal of the mandatory six-year

timeline and the introduction of an optional pathway to chartering aligns with international best practice in tertiary education regulation. This principle aims to ensure that regulatory actions are not unnecessarily burdensome but tailored to the scale of the businesses, organisations and governmental jurisdictions subject to regulation without compromising on quality. It mandates agencies to solicit and consider flexible regulatory proposals and to explain the rationale for their actions to ensure that such proposals are given serious consideration.

The Committee is persuaded that a strengthened continuous quality audit regime, as proposed, better serves the national interest than arbitrary deadlines. Quality assurance should be an ongoing process of improvement, not a one-time compliance event measured against a calendar.

Representation of Public and Private Universities on GTEC Board

The Committee viewed the proposed amendments to the composition of the Ghana Tertiary Education Commission's governing body as a positive development. The proposed amendments introduced the inclusion of two Vice-Chancellors from public universities and a founder, as well as a head of a private tertiary educational institution, is a good development. This reform, the Committee believes, will enhance the diversity of perspectives within the Commission and also give voice to the founders who bear the entrepreneurial risk of establishing institutions. The amendment will also strengthen the

continuous quality audit regime in place, which will better serve the national goals of not only having access to education but also having education that is of high quality, coupled with innovation and stability.

Conclusion and Recommendation

The Committee, having carefully considered the Education Regulatory Bodies (Amendment) Bill, 2026, is of the view that the proposed amendments strike an appropriate balance between the legitimate interest of the State in ensuring quality tertiary education and the practical realities facing private institutions. The Bill preserves the integrity of the regulatory framework while introducing the flexibility necessary for institutional survival and growth.

In this regard, the Committee recommends to the House to adopt its Report and pass the Education Regulatory Bodies (Amendment) Bill, 2026, in accordance with Article 106 of the 1992 Constitution.

Respectfully submitted.

2:08 p.m.

Mr First Deputy Speaker: Hon Members, Motion moved and Report of the Committee has been presented. Pursuant to Standing Order 127, a full debate shall arise on the principles of the Bill on the basis of the Explanatory Memorandum and the Report of the Committee. The Floor is now open.

Question proposed.

Mr First Deputy Speaker: Hon Members in the absence of anybody to contribute to the Report, I will put a question—

Dr Fred Kyei Asamoah (NPP — Offinso North): Mr Speaker, when your Committee met in considering the amendment to Education Regulatory Bodies Act 2020 (Act 1023), which had imposed a four-year limit on an institution to be affiliated to a mentor, and additional two years within which one has to be chartered, we had the opportunity to meet the owners of private tertiary institutions in the country. We realised that sometimes some of the students attend such private institutions which is within their proximity with the quest that they will obtain a degree or a certificate affiliated with one of the traditional long-standing universities like University of Ghana, Legon, and the Kwame Nkrumah University of Science and Technology (KNUST), University of Cape Coast (UCC) and the rest. Many a time they get to finish and if they have to acquire a certificate of that particular private institution, they do not like. It tends to reduce their number of students or their enrolment numbers. As such, the private owners believe that they are trying to support Government to increase their tertiary enrolment ratio which we call the Gross Tertiary Enrolment ratio. As such, to support, they want to remain until a time that they think they are fully ready to be chartered, and also, they do not want to be burdened with the issue of having to compete within these times for the number of students. This is because we realised that some of the public institutions have open campuses around their location.

Mr Speaker, the Committee realised that Act 1023 has been five years, and we have learnt some lessons. In legislation, we want to legislate to improve on the system. So, we agreed to their request to charter as when and how they want, but also recognising that we do not want to downplay quality and standards. As such, the role of GTEC will still be enforced. We will also follow up to make sure that they do not bring down quality in our tertiary education.

Mr Speaker, I believe this amendment is something that we have to support. Furthermore, we ask the Ministry of Education that there are other agencies within the Education Regulatory Bodies Act that we also have to amend especially with reference to the National Teaching Council where some of the provisions within this Act had asked that at certain time, examinations should be conducted. Now, it has been improved or it has been amended. We ask that going forward the Minister should come so we can have a thorough review of Act 1023 to improve on education in this country. Mr Speaker, with these few words I support the amendment.

Prof Kingsley Nyarko (NPP — Kwadaso): Mr Speaker, I am grateful for the honour to add my voice to the amendment of Act 1023. Mr Speaker, some years back there was nothing like compulsory charter. When a private tertiary education institution reaches or is ready to obtain a charter, they go through a process, after operating for at least 10 years. Then in 2020, Act 1023 was passed, and it became mandatory.

There is nowhere in the world where we have mandatory charter. In fact, in some institutions, they have what we call listed institutions. So, the idea to revert to optional chartering is the best way to go. I wanted the opportunity to applaud the Committee on Education and the Ministry of Education headed by Hon Haruna Iddrisu for taking the bold step to ensure that we give institutions the opportunity or flexibility, and not also undermining quality. Quality assurance is an ongoing process. Even though we are going to the optional angle, I would urge the GTEC to ensure that they do their job effectively in upholding the tenets of quality assurance.

On that score, Mr Speaker, I support the Bill, and I am hopeful that we will do it expeditiously for these institutions to operate within the new arrangement. On that score, I want to thank you for indulging me. Thank you, Mr Speaker.

Mr Abdul-Fatawu Alhassan (NDC — Yendi): Mr Speaker, I wish to also join my Colleagues in calling on Members to support the call by the Minister to support the amendment being proposed to the Education Regulatory Bodies Act, (Act 1023). Mr Speaker, over the years, private universities have played a key role in the development of the nation. Mr Speaker, private universities have helped to expand access to tertiary education. Private universities have contributed significantly to the human capital development of the nation. Lastly, Mr Speaker, we all know the financial burden that the state carries in an attempt to provide tertiary education. Private universities come in handy in this regard.

Mr Speaker, with the current Act, private universities are given the requirement to within six years after the passage of the Act, and the Act was passed in 2020, to charter. To charter means that these private universities, even though they are under mentorship, it means that once the six-year period is due, they are supposed to fulfil certain requirements, be able to now award their own degrees and be fully functional universities. Mr Speaker, it has been very difficult for some of these universities. When we met them, the universities expressed serious challenges in meeting some of these requirements. Given that, we only have up to August of this year for all these private universities to be able to meet these requirements, it is obvious that there is a bigger challenge ahead.

Mr Speaker, as legislators, our duty is to make sure that we remove all forms of hurdles and hindrances in the way our institutions function. This call is to amend the Education Regulatory Bodies Act to provide for optional chartering so that if an institution decides to charter, it goes ahead and gets chartered. Mr Speaker, two requirements are needed when an institution is to charter under the current Act. They need to marshal substantial financial reserves, and they need to show proof of the existence of fiscal structures before they can even be granted the licence to charter. Mr Speaker, it is obvious that our private universities are already paying huge fees to their mentor institutions by way of

affiliation fees. So, they are going to find it difficult to meet these substantial financial reserves which are required of them. I believe that this call for us to amend this Act is a call in the right direction.

The last words that were given by the Minister to these private universities when we met them was that this measure should not be a way of compromising on the provision of quality tertiary education. I believe the private universities have listened to the Minister and this amendment will only help to enhance the provision of private tertiary education. Thank you, Mr Speaker.

Question put and Motion agreed to.

2:18 p.m.

Education Regulatory Bodies (Amendment) Bill, 2026 accordingly read a Second time.

Mr Dafeamekpor: Mr Speaker, may I pray that we come back to the item numbered 9 to lay a couple of Papers. Specifically, I want to lay the items numbered 9(a) and 9(c). Mr Speaker, item numbered 9(c). The Chairperson is unavoidably absent. So, may I pray that I do this on his behalf.

Mr First Deputy Speaker: Minority Leader, that is the application.

Osahen Afenyo-Markin: Mr Speaker, if the Majority Chief Whip wants to lay it, it is fine.

PAPERS

By Mr Rockson-Nelson Etse Kwami Dafeamekpor on behalf of the Majority Leader—

Proposed Formula for Distributing the District Assemblies Common Fund (DACF) for the Year 2026.

Referred to Committee of the Whole.

By Mr Rockson-Nelson Etse Kwami Dafeamekpor on behalf of the Chairperson of the Committee—

Report of the Committee on Defence and Interior on the Community Service Bill, 2026.

Mr Dafeamekpor: Mr Speaker may I pray that we take the *Order Paper Addendum* to take presentation of Papers. The Growth and Sustainability Levy (Amendment) Bill, 2026.

Osahen Afenyo-Markin: I do not know why the Majority Chief Whip wants to change the atmosphere in this Chamber. At Conclave when we discussed this matter, the understanding was that there would have to be proper briefing. The last time, Rt Hon Speaker indicated that some of these important matters must be discussed thoroughly by Leadership. The Rt Hon Speaker himself is not around, and—

Mr First Deputy Speaker: Hon Minority Leader, I will plead that you do not bring the Rt Hon Speaker into this.

Osahen Afenyo-Markin: Yes, Mr Speaker. That is fine. The understanding was we would discuss this matter. It is not about just laying the Paper. Let us be careful how we conduct Government Business in this Chamber. We agreed to proceed according to this *Order Paper* then from nowhere an *Addendum* is printed, and we are told that a certain Paper is to be laid.

Let us not do this to ourselves. Let us allow the right things to be done. Mr Speaker with respect, I will plead with the Majority Chief Whip that there are other matters to be considered. Let us proceed with those ones. He should not introduce controversy here. There was no agreement on this at Conclave. If he wants to introduce controversy, then we will take him to the law because they are not even up to 40. So, he should not attempt it. A silver lining has been given to him, so he should take advantage of it and do the right thing.

Mr Dafeamekpor: Mr Speaker, first of all, this is not a surprise. I am not springing a surprise on the Minority Leader or the Minority Side in this matter. This matter came up at Conclave and the concern was that we needed to engage to have it laid and we had an engagement.

Indeed, this was produced at Conclave, but the suggestion on the Floor now that I am springing a surprise on him is absolutely incorrect. We had discussed this. This was produced at Conclave. So, he should not suggest that this emerged from nowhere. It was discussed; he had reservations and his

reservations have been assuaged. So, we are only laying this, Mr Speaker. In any case it is to reduce taxes. How can this be a problem for the Minority Leader when his concern is that there are too many taxes? We want to reduce it. How can this bother the Minority Leader? When, just a while ago, he was fighting that the young people should be given opportunities. We want to lessen their burden, so he should please go with me and let us lay this Paper.

Osahen Afenyo-Markin: Mr Speaker, I will not fall into any blackmail traps. I cannot be blackmailed into this. Mr Speaker, the matter was raised and discussed, but we did not reach an agreement. The understanding I had from the Majority Bench through its Leadership was that this matter will be placed on ice for us to have a proper briefing on it by the Minister himself.

Mr Speaker, what he does not know is that under the new Minerals and Mining Royalties Regulations, there is this upscaling regime that the country is introducing. His Administration is introducing an upscaling regime. If we read this whole document and they think they are bringing this to mitigate it, this document will not mitigate the harm they are going to cause. Hon Colleagues in the Majority should stop this rush work and let us take our time and do the right thing.

Mr Speaker, I do not want to proceed further. Let us suspend discussions on this and further engage. There are matters that are critical and tangential. It is not just about this. The Hon Majority

Chief Whip should not blackmail me. I am against taxes. I am for tax rebates. I am for tax waivers. I am for reduced taxes. I am for it because I am a private sector person. If we have low taxes businesses are able to expand and reinvest.

2:28 p.m.

They are creating the impression that they are reducing taxes, but I know that, at the base of it, the situation is worse. I will not be blackmailed. That Regulation, the upscaling regime he has introduced, if we compare, it is a very serious matter. I believe that the right thing to do is for the Minister himself to come into the Chamber, meet with Leadership and engage extensively. I do not want to say he has gained notoriety for not engaging. They do not consult stakeholders; they only get into the situation and embarrass themselves. They remember the Lithium Agreement; they came to lay it, defended it and when the Civil Society Organisations (CSOs) started punching holes, they came to this House to withdraw. They should not be doing that to themselves.

Mr Speaker, we have the mining firms raising serious concerns and this is not the time for them to come and say that they are laying this Paper to reduce taxes.

Mr First Deputy Speaker: Hon Minority Leader, with all due respect, at this particular moment, the Bill is not before the House. So, why are we placing issues on record when the Bill has not yet been introduced?

Osahen Afenyo-Markin: Mr Speaker, I appreciate where you are coming from, technically, but this is a House of rules and precedents. Mr Speaker, the precedent is that these things receive prior engagement. The Hon Minister for Education has been a Minority Leader before. It is not just the law, but precedents and practice. They know that. So, they should not shut my mouth by using a law to gag me. I do not only depend on the law, but I also depend on practice and convention.

Mr Speaker, it is true that the Bill is yet to be laid. I agree, but what they are doing is to introduce the subject matter. And I am saying that at Conclave, the Majority Chief Whip knows that there was no consensus on this. We discussed it and we said we would engage further and that he should bring his boss for us to have further discussions. So why do they want to lay it? Why do they want to spring a surprise?

Mr Dafeamekpor: Mr Speaker, first of all, it is untenable for the Minority Leader to suggest that the existence of a certain Regulation would torpedo a substantive enactment. When this House decides, he suggested [**Osahen Afenyo-Markin:** I did not say so.] He said so. He said that the introduction of this Bill and its passage will not overturn the terms of a Regulation in place. That was what he said. He is my mate and he knows that in the hierarchy of laws, an enactment supersedes the terms of a Regulation. So, he is on a journey to nowhere. Once this House decides that we will pass this law, the terms of that Regulation or whatever it is, become subservient and of no effect,

especially when the enactment is superior to the terms of that Regulation. That is one.

Two, there was a discussion about this matter and the fact that he said no, did not outnumber the number of us at Conclave. Yes, we agreed that we would do this. He had reservations, but we will lay this and then we can engage. But to suggest that because he merely said no and therefore the *Paper* cannot be laid, with all due respect to him, it is untenable. Let us lay this. He is preparing to take me on, but we cannot do this ding-dong. Let us allow the Bill to be laid and then we can further engage. If indeed he thinks that we should engage.

But finally, Mr Speaker, how does the reduction of a Bill that seeks to reduce tax be a bother to the Minority Leader? He should be happy and praising Government that we are a listening Government. In any case, when he was here as the Majority Leader, he withdrew as many as 16 instruments that he brought here. I have the data. So, withdrawing one single Lithium Agreement does not injure the reputation of this Government. Sometimes, do not do these things on Fridays. On this note, Mr Speaker, let us lay the *Paper* and then we can — [*Hear! Hear!*]

Osahen Afenyo-Markin: Mr Speaker, to the uninitiated, this submission will be impressive. But I am seized with a fact and he knows that in the least, my law is not rusty. He knows that, so he cannot seek to confuse us with a certain jurisprudence of his own, claiming that there is a substantive law coming and

then it precedes a regulation. There are two different matters being discussed, so he should not confuse us. Mr Speaker, he is in the Majority; if he says he wants to lay this *Paper*, he should be mindful of the constitutional provisions. He does not have the numbers to lay this *Paper*. He should know that. If he wants us to talk law, let us talk law. He does not even have up to 40 Members in this Chamber. Mr Speaker, I am repeating, if he wants to now talk law and strictly law, then he should go and bring his numbers and come and do it. If he wants to turn this Parliament into a one-Sided Chamber, so be it. They do not want to listen; they would always go for the CSOs to embarrass them. When the very advice is being given to them in this Chamber, we at Conclave agreed that we should put this on ice. They should not come here and act in bad faith.

The understanding was that the Minister for Finance himself must come. That was what we agreed upon. Why would they turn around and say that they should lay the *Paper*? Mr Speaker, there was no understanding and there was no agreement to lay this *Paper*. He and I agreed that the Minister for Finance must come. In any event, his boss, the Majority Leader, is not here. He told me he would want to engage the Minister so that we can discuss this matter. Why does he want to lay the *Paper* on his blind side when his boss had given an indication?

Mr Speaker, let us be fair with each other. The Majority Leader gave his word that he would engage the Minister further, then after that, we would sit

together. So, Mr Speaker, I do not understand why he wants to lay the *Paper*. This *Paper* must not be laid. It cannot be laid because there was no understanding. If he wants to press, then he should bring his number. He should meet a minimum threshold to enable him to proceed. He is talking law.

Mr Dafeamekpor: Mr Speaker, my Brother Osahen Kwamena Afenyo-Markin, my Classmate, my Friend, my Study mate, should calm down. Today is Friday, so he knows that we will engage further. This is not a Bill that we are seeking to rush at all. So, let us lay it and then we can further engage. He has the very beautiful Aunty Patricia by him, who is serving as the soothing balm. So, I have heard him. He has registered his protestations, but let us lay the Bill, and then we can engage.

Mr First Deputy Speaker: I believe strongly that regarding the engagement; there are more rooms. We are now at a stage where the Bill will be introduced in Parliament; it becomes a property of Parliament. And then we can do whatever engagement we want to do, including stakeholder engagement, leading to a possibility of the passage or otherwise of the Bill. So, I will plead that at this point, we have the Bill introduced.

Osahen Afenyo-Markin: Mr Speaker, with respect, I always want us to act in good faith. The Leader and my good self, had an understanding. If at any point, the Majority Chief Whip intended any violation, same should have been communicated. Mr Speaker, if I am quoting correctly what Hon Muntaka

said not long ago, who am I? When the man has realised he does not have the numbers— *[Laughter]*

2:38 p.m.

He has now realised that his 189 Members are not 189 so he is eating a humble pie. There is always another day, but he owes me in equity today.

Mr Speaker, you may proceed.

Mr First Deputy Speaker: Yes. Hon Members, let us turn to the *Order Paper Addendum*; at the commencement of Public Business, Presentation and First Reading of Bills.

BILL — FIRST READING

Growth and Sustainability Levy (Amendment), Bill, 2026

AN ACT to amend the Growth and Sustainability Levy Act, 2023 (Act 1095) to reduce the rate of Levy for gold mining companies from three per cent of gross production to one per cent of gross production.

Presented by the Deputy Minister for Finance (Mr Thomas Nyarko Ampem) on behalf of the Minister for Finance.

Read the First time; referred to the Finance Committee.

Mr First Deputy Speaker: Yes, Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, may I pray that we turn to the substantive *Order Paper* and take the item listed 48.

Mr First Deputy Speaker: Very well. Yes, Minority Side? The application is to take the item numbered 48.

Mr Shaib: Mr Speaker, we have no objection.

Mr First Deputy Speaker: The item numbered 48, yes, Minister for Education?

MOTION

Suspension of Order 169(1)

Minister for Education (Mr Haruna Iddrisu): Mr Speaker, I beg to *move*:

That notwithstanding the provision of Order 169(1) of the Standing Orders which requires that when a Bill has been read a Second time, the Bill shall pass through a Consideration Stage which shall not be taken until at least two sitting days have elapsed, the Consideration Stage of the Education Regulatory Bodies (Amendment) Bill, 2026 may be *taken* today.

Chairperson of the Committee (Mr Peter Kwasi Nortsu-Kotoe): Mr Speaker, I beg to second the Motion.

Question put and Motion agreed to.

Resolved accordingly.

Mr First Deputy Speaker: Yes, Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, the sense of the House is that we take the item numbered 49. So, we should take the item numbered 49 and take Consideration Stage because the amendments proposed are quite a few.

Mr Speaker, we can exhaust it quickly, then we break into Committee of the Whole. Hon Members, Education Regulatory Bodies Amendment Bill, 2026 at the Consideration Stage.

BILL — CONSIDERATION STAGE

Education Regulatory Bodies (Amendment) Bill, 2026

Clause 1 — Section 11 of Act 1023 amended

Chairperson of the Committee (Mr Peter Kwasi Nortsu-Kotoe): Mr Speaker, I beg to move, paragraph (b), line 1, after “universities”, *insert* “, one of whom shall be from a technical university”.

Question put and amendment agreed to.

Mr First Deputy Speaker: Yes, Chairperson of the Committee, proposed amendment (ii)?

Mr Nortsu-Kotoe: Mr Speaker, I beg to move, after paragraph (c), *insert* the following new paragraph:

“one head of private tertiary education institutions nominated by the heads of private tertiary education institutions;”

Question put and amendment agreed to.

Clause 1 as amended ordered to stand part of the Bill.

Clause 2 — Section 19 of Act 1023 amended

Mr First Deputy Speaker: Yes, Chairperson of the Committee?

Mr Nortsu-Kotoe: Mr Speaker, I beg to move, subsection (4A), opening phrase, line 1, *delete* “Commission” and *insert* “Board”.

Question put and amendment agreed to.

Mr Nortsu-Kotoe: Mr Speaker, I beg to move, subsection (4A), paragraph (a), *delete* “chartered”.

Question put and amendment agreed to.

Clause 2 as amended ordered to stand part of the Bill.

Clause 3 — Section 22 of Act 1023, amended

Mr Nortsu-Kotoe: Mr Speaker, I beg to move, Section 22, subsection (1), line 2, after “resources” *delete* “and”, and *insert* “,”.

Question put and amendment agreed to.

Clause 3 as amended ordered to stand part of the Bill.

Clause 4 ordered to stand part of the Bill.

Clause 5 — Section 38 of Act 1023, amended.

Mr Nortsu-Kotoe: Mr Speaker, I beg to move, paragraph (b), *delete* and *insert* the following:

“(b) the insertion after the definition for “tertiary education institution”, of “‘transnational institution’ means a foreign institution registered and accredited in the home country of the foreign institution with physical presence in Ghana that delivers international education through

(a) distance learning;

(b) online learning; or

(c) local delivery partnerships.”

Question put and amendment agreed to.

Clause 5 as amended ordered to stand part of the Bill.

Clause 6 ordered to stand part of the Bill.

The Long Title ordered to stand part of the Bill.

2:48 p.m.

Mr First Deputy Speaker: Chairperson of the Committee, any proposed amendment to the long title?

Mr Nortsu-Kotoe: Mr Speaker, there is no proposed amendment.

Mr First Deputy Speaker: It is, however, for the consideration of the House.

Hon Members, any proposed amendment to the long title?

Question put and amendment agreed to.

The long title ordered to stand part of the Bill.

Mr First Deputy Speaker: Hon Members, that brings us to the end of the Consideration Stage of the Education Regulatory Bodies (Amendment) Bill 2026.

Hon Members, before proceeding, permit me to acknowledge the presence of students from Excellence Foundation Institute, led by Blessing Adu Gyamfi, Headmistress. They are from Amasaman and they number 70.

My dear children, kindly resume your seats.

[Students from Excellence Foundation Institute were acknowledged.]

Mr First Deputy Speaker: Yes, Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, we may take Motion numbers 50 and 51.

Mr First Deputy Speaker: Yes, the application is to take Motion number 50.

Yes, Minister for Education?

MOTION

Suspension of Order 172(1)

Minister for Education (Mr Haruna Iddrisu): Mr Speaker, I beg to move:

That notwithstanding the provision of Order 172(1) of the Standing Orders which requires that where a Bill has passed through the Consideration Stage, the Third Reading thereof shall not be taken until at least one sitting day has elapsed, the Motion for the Third Reading of the Education Regulatory Bodies (Amendment) Bill, 2026 may be *moved* today.

Chairperson of the Committee on Education (Mr Peter Kwasi Nortsu-Kotoe): Mr Speaker, I beg to second the Motion.

Question put and Motion agreed to.

Mr First Deputy Speaker: Yes, the substantive Motion, 51.

Mr Dafeamekpor: Mr Speaker, may we take Motion number 51.

BILL — THIRD READING

Education Regulatory Bodies (Amendment) Bill, 2026

Minister for Education (Mr Haruna Iddrisu): Mr Speaker, I beg to move:

That the Education Regulatory Bodies (Amendment) Bill, 2026 be now read the Third time.

Chairperson of the Committee (Mr Peter Kwasi Nortsu-Kotoe): Mr Speaker, I beg to second the Motion.

Question put and Motion agreed to.

The Education Regulatory Bodies (Amendment) Bill, 2026 — *read the Third time and passed.*

Mr First Deputy Speaker: Yes, Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, the sense of the House is that, we suspend Sitting and constitute a Committee of the Whole so that we can consider the DACF formula.

Mr First Deputy Speaker: Yes, the application is to constitute the House into a Committee of the Whole. Any opposing view?

Yes, Hon Minister for Communications, Digital Technology and Innovations?

Mr Samuel Nartey George: Mr Speaker, I have been here to answer Questions; the Questions are time-bound. [*Expunged by order of Mr Speaker.*] So, I am letting the House know that I have been present, I have been in the House for a number of hours and I have not been called.

Mr First Deputy Speaker: Hon Minister for Communications, Digital Technology and Innovations for certain issues, just relate with the Leadership.

Yes, Minority Leader?

Osahen Afenyo-Markin: Mr Speaker, the Hon Minister for Communications, Digital Technology and Innovations, a moment ago, made a statement which statement has gone into the records of this House. I would want to plead with him to kindly withdraw those statements.

Mr George: Mr Speaker, what statement is he referring to? He has to be specific on what statement he is referring to. The Minority Leader must be specific. I said a number of things.

Osahen Afenyo-Markin: Mr Speaker, the Minister must know that we accord him respect, because he is our Minister. He must accord Leadership the same respect.

Mr Speaker, Government Business is called by the Leadership of the House. So, the Hon Minister is a Minister of State. He should kindly withdraw those statements he made earlier by way of objection to the application made by the Majority Chief Whip. That is what I am

saying that he should withdraw those statements, because he rose on his feet to oppose the application with the explanation that— So, he should withdraw it. He should withdraw it, it is wrong.

Mr George: Mr Speaker, let us be clear, I did not just rise on my own. The Speaker of the House asked a specific question. I am a Member of this House, and I have maximum respect for Leadership. So, playing to the gallery with some of the comments he made are very unfortunate. But let us be clear, I did not rise to object to Government Business.

Sometimes when we are in the chair, we should pay attention to Business in the House. The Speaker in the Chair asked the question if anybody had an objection. So, I did not rise on my own. I rose in response to the question the Speaker asked. I caught his eye, and he gave me the floor. So, I did not just rise on my own.

It is important that we set the record straight. It is going into the *Hansard*. There are people we play to the gallery with. We have our banter when we have to, but when it is on the record, the record is the record. So, if he is asking me to withdraw, what exactly should I withdraw? Is he asking the Speaker to redraw his question if anybody had an opposing view. The Speaker asked that question, and I rose on it. Let us state for the fact that his people have asked Questions. For those who have just come to Parliament and have not paid attention to even orientation, make the noise. But— [*Uproar*] No, first-timers who did not pay attention —

2:58 p.m.

Mr First Deputy Speaker: Hon Minister for Communication, Digital Technology and Innovations, what you have to withdraw is—

Mr George: Mr Speaker, what I said is that the Questions I have been invited to answer for which I have sat in the Chamber for two and a half hours are time bound. The individuals who have even filed the Questions are not in the Chamber, and so I am saying that, Mr Speaker—

Mr First Deputy Speaker: All you need to do is to wait, when it gets to the time and we call the Questions and the individuals are not here to ask the Questions, then whoever is presiding at that material moment will give the necessary directions. That is what happens. But I am not also comfortable with the statement that—

I believe that is what the Minority Leader is asking you to withdraw. So just do the honourable thing and let us make progress This is not an issue.

Mr George: Mr Speaker, I have the greatest respect for you, but the reason I made that statement is because there are other obligations. I worked with the Table Office to schedule today and that is why I am drawing the attention of the House. Mr Speaker, the Minority Leader would be the same person to say Ministers are avoiding coming to the House. That is why I am making this statement so that it is not said that when I am rescheduled and based on other

prior commitments, I am unable to honour, it would not be said—

Mr First Deputy Speaker: Hon Minister for Communication, Digital Technology and Innovations, just take a cue.

Mr George: I take a cue from you, Mr Speaker, and I am guided. Thank you. [**Some Members of the Minority:** He should withdraw!]

Mr First Deputy Speaker: Hon Members, with all due respect, the statement by the Minister for Communication, Digital Technology and Innovations to the effect that—is accordingly ordered to be expunged from our record as if he does not exist.

Yes, Hon Minority Leader?

Osahen Afenyo-Markin: Mr Speaker, a moment ago the Hon Minister made a statement to the effect that me urging upon him to withdraw the rather unfortunate statement amounted to playing to the gallery. He went on further to use his left hand to point at some Colleagues at the Backbench claiming that they have just come and they should go and learn the rules. Mr Speaker, Hon Sam George indeed is a Colleague Member of Parliament, but he knows, and I know that once you become a Minister of State, you hold an elevated position and no matter what, all of us must accord that rank the needed respect.

I find what he just directed at my Backbench unfortunate, with the left hand. Mr Speaker, the Hon Minister

should know there is a good reason why we have a Frontbench, that in all difficulties and dangers as you see them you engage so that we all resolve. Even if they were wrong, he is a Minister of State; two wrongs— Even if he saw anything wrong, he does not have to use his left hand to attack a Colleague in the Chamber. That is exactly what he did.

Mr Speaker, anyway, that thing that we cherish melts and it melts with time. I rest my case. *[Hear! Hear!]*

Mr First Deputy Speaker: Hon Members, the House is constituted into a Committee of the Whole. The Marshall may clear the Gallery.

3:02 p.m. — [The House constituted into a Committee of the Whole.]

4:55 p.m. — Sitting resumed.

Mr Dafeamekpor: Mr Speaker, let us take the Motion numbered 2 as listed on the *Order Paper Addendum 2*.

Mr First Deputy Speaker: Yes, the Motion numbered two, Minister for Finance?

Mr Shaib: Mr Speaker, it is critical that—and we do not need two reports, with all due deference.

Mr First Deputy Speaker: Yes, it is very critical. I insisted that they should do the distribution of the Reports.

Mr Shaib: Yes, so let us have the Reports. But they cannot be doing these things. If they want to take the Motions, and they want us to be carried through, they should let us have the Reports, and make sure my Members have it, so that they would not think that— *[Interruption]* And that is what he always does. He only starts distributing the Reports after we talk which is not fair.

Mr First Deputy Speaker: Can we make progress?

Mr Shaib: Mr Speaker, the Reports are not legible. We cannot read.

Mr First Deputy Speaker: Please, as an available Leader, give him a legible copy of the Reports. *[Pause]* Can we now move on?

MOTION

Suspension of Order 104(1)

Deputy Minister for Finance (Mr Thomas Nyarko Ampem) (MP) *on behalf of the Minister for Finance:* Thank you, Mr Speaker. I beg to move:

That notwithstanding the provision of Order 104(1) of the Standing Orders which requires that a Motion shall not be debated until at least two sitting days have elapsed after the notice to move the Motion is given, the Motion for the Second Reading of the Growth and Sustainability Levy (Amendment) Bill, 2026 may be moved today.

Vice Chairperson of the Committee (Mr Richard Acheampong): Mr Speaker, I second the Motion.

Question put and Motion agreed to.

Resolved accordingly.

Mr First Deputy Speaker: Yes, the Motion numbered 3 on the *Order Paper Addendum 2*. Deputy Minister for Finance?

BILLS — SECOND READING

Growth and Sustainability Levy (Amendment) Bill, 2026

Deputy Minister for Finance (Mr Thomas Nyarko Ampem) (MP) *on behalf of the Minister for Finance:* Mr Speaker, I beg to move:

That the Growth and Sustainability Levy (Amendment) Bill, 2026 be now read a Second time.

Vice Chairperson of the Committee (Mr Richard Acheampong): Mr Speaker, thank you very much for the opportunity. I call on the *Hansard* to capture the Report as having been read in its entirety.

Introduction

The Growth and Sustainability Levy (Amendment) Bill, 2026 was presented to Parliament by Hon Deputy Minister for Finance, Mr Thomas Nyarko Ampem in accordance with Article 174 of the 1992 Constitution and read for the first time on Friday, 13th March, 2026.

Subsequently, the Bill was referred to the Finance Committee for consideration and report in accordance with Article 106(4) of the 1992 Constitution and Orders 165 and 226 of the Standing Orders of Parliament.

Deliberations

The Committee met with the Hon Deputy Minister for Finance, Mr Thomas Nyarko Ampem, and officials from the Ministry to discuss the Bill.

The Committee is grateful to the Hon Deputy Minister and the Officials for attending upon the Committee and assisting in the deliberations.

Reference documents

The Committee referred to the following documents during the deliberations:

- i. The Constitution of the Republic of Ghana, 1992;
- ii. The Standing Orders of Parliament, 2024;
- iii. The Growth and Sustainability Levy, Act 2023 (Act 1095);
- iv. The Minerals and Mining Act, 2006 (Act 703); and
- v. The Minerals and Mining (Royalties) Regulations, 2025 (L.I.2517).

Background to the Bill

The Government increased the Growth and Sustainability Levy applicable to gold mining companies from one per cent of gross production to three per cent of gross production in 2025. The increase was intended to enable the nation to share in the increased profitability of the gold mining sector arising from the significant rise in global gold prices.

Ghana currently operates a dual royalty system in the mining sector. Under this system, mining companies that operate under development agreements pay royalties based on a sliding scale, while companies without such agreements pay a flat royalty rate of five per cent of gross production. The sliding scale royalty regime allows royalty payments to vary according to price levels, such that the royalty rate increases incrementally as mineral prices rise.

In order to promote equity within the mining industry and ensure that the nation benefits adequately from increases in gold prices, Government has expanded the application of the sliding scale royalty regime to cover all gold mining companies.

With the introduction of this revised royalty policy, the policy objective that informed the increase in the Growth and Sustainability Levy in 2025 has been addressed. Government has therefore decided to revert the Levy to the one per cent rate that applied in 2024 under the Growth and Sustainability Levy Act, 2023 (Act 1095).

Object of the Bill

The object of the Bill is to amend the Growth and Sustainability Levy Act, 2023 (Act 1095) to reduce the rate of the Growth and Sustainability Levy applicable to gold mining companies from three per cent of gross production to one per cent of gross production.

Summary of contents of the Bill

The Growth and Sustainability Levy (Amendment) Bill, 2026 contains one clause which seeks to amend the Schedule to the Growth and Sustainability Levy Act, 2023 (Act 1095) by substituting the second row of Category B to reduce the rate of the Growth and Sustainability Levy applicable to mining companies and upstream oil and gas companies from three per cent of gross production to one per cent of gross production.

The above measure would be achieved through the amendment as shown in the attached Schedule.

Observations and Recommendations

The Committee made the following observations during the deliberations:

Justification for Amending the Current Levy

The Committee observed that the Growth and Sustainability Levy (Amendment) Bill, 2026 proposes to reduce the Levy rate applicable to gold mining companies from three per cent of gross production to one per cent of gross

production. The increase in the Levy rate to three per cent in 2025 was introduced as a temporary fiscal measure to enable the State to benefit from the significant rise in global gold prices and the increased profitability of the gold mining sector.

However, the Committee further noted that Government has expanded the application of the sliding scale royalty regime to cover all gold mining companies. As a result, the policy objective that informed the increase in the Levy rate has largely been addressed through the revised royalty framework. This measure would significantly relieve the current burden of mining companies and make the mining sector more competitive.

Equity in the Royalty Framework

The Committee observed that the expansion of the sliding scale royalty regime to cover all gold mining companies promotes fairness and equity within the mining sector. Previously, the royalty framework operated under a dual arrangement where companies operating under development agreements paid royalties based on a sliding scale while companies without such agreements paid a flat royalty rate of five per cent of gross production. This arrangement created disparities in the royalty obligations of mining companies within the same industry. By extending the sliding scale royalty regime to all gold mining companies, Government seeks to establish a more uniform and equitable system of royalty payments across the sector.

Fair State Participation in Mineral Revenue

The Committee further observed that the sliding scale royalty system provides an effective mechanism for the State to benefit from increases in mineral prices, particularly gold prices. Under the sliding scale system, royalty payments are linked to prevailing price levels such that the royalty rate increases incrementally as gold prices rise. This framework ensures that the State automatically shares in windfall gains arising from favourable commodity price movements without the need for frequent policy adjustments. The framework would further strengthen Government's ability to mobilise revenue from the mining sector while maintaining a predictable and balanced fiscal regime for industry operators.

Conclusion

The Finance Committee scrutinised the Bill within the parameters of the Constitution and the existing mining royalty regime. The Committee holds the considered view that the introduction and expansion of the sliding scale royalty regime to cover all gold mining companies, the objective of ensuring that the State benefits from increases in gold prices is now adequately addressed.

The Committee accordingly recommends to the House to adopt this Report and pass the Growth and Sustainability Levy (Amendment) Bill, 2026 in accordance with Article 106 of the Constitution.

APPENDIX

SCHEDULE TO ACT 1095
TO BE AMENDED

Second row of the Schedule to be amended.

Category B	
Mining companies and upstream oil and gas companies.	1 per cent of gross production.

Question proposed.

Mr Kwabena Okyere Darko-Mensah (NPP — Takoradi): Thank you very much, Mr Speaker. We are happy that this Bill has come back to this House for an amendment. I believe that when it was mentioned earlier in the budget, our Side had complained that Government was only shifting taxes from one place to the other. For the business community, we are aware that lower taxes lead to reinvestments. Lower taxes ensure that there is incentive for work. Therefore, for the Government to be bringing this back to the House, we are happy to support it. We know that it is going to support the mining industry.

Mr Speaker, recently we have had this local content in the mining industry. Unfortunately, when you go to the mining areas, they continue not to be developed. Because the local content awards of contracts for us in the mining areas have all been awarded to people in Accra. Therefore, even though people are gaining these contracts, the investments in the communities are minimal. We believe that while we are

giving incentives to the mining companies in the area of lowering their taxes, we want them to ensure that they give the contracts to local companies in mining communities in this country, so that a lot of the money can stay there.

Mr Speaker, anytime you talk about mining in Ghana, we are told that the companies that own these operations do not come from Ghana, unlike South Africa, where the South Africans actually own it and that is why they have been able to develop the likes of Johannesburg. In our country, the mining communities where mining takes place do not get these contracts, therefore, the money does not stay in those communities. So, we are asking that while the Government at this level is reducing the taxes for the growth and opportunities, we should also ensure that the mining companies who are getting these benefits should ensure they award contracts to local companies within a certain radius at those mining communities. With this, we would like to support this amendment that has been brought to the House.

5:05 p.m.

Nana Agyei Baffour Awuah (NPP — Manhyia South): Thank you very much, Mr Speaker. When you advert your mind to the justification for amending the current levy, it is obvious that the position was taken to help Government raise revenue. When you go through the Report, I was expecting, for instance, to see how much Government was able to raise during that time, and how much it is going to affect us in terms of the revenue in the event of the amendment. We do not see any signs in here. It is very important because we approved the Budget not long ago, and coming after the Budget has been approved, we are wondering how this is going to affect the Budget in terms of the revenue.

Mr Speaker, we would note that when we look at paragraph 7.1, for instance, there is an attempt to suggest that the changes that are being made are likely to help us make the same amount, but there are no figures. For instance, it states that:

“However, the Committee further noted that Government has expanded the application of the sliding scale royalty regime to cover all gold mining companies.”

That notwithstanding, when you look at the last sentence of that second paragraph, 7.1, it says:

“This measure will significantly relieve the current burden of mining companies and make the

mining sector more competitive. This is being done for mining companies and not the nation. So, if we need to get figures, then we will know how this is also going to affect the nation. Because we cannot just be looking at the interest of the mining companies without looking at the interest of the nation.

So, Mr Speaker, in the circumstances, I think that more information is needed. Ordinarily, I should be happy because the Damang Gold Mine has reverted to the state. Even though the Minister for Lands and Natural Resources is yet to disclose the process they intend to take in offloading Damang Gold Mine, no intention has yet been expressed, even though things are being heard in the grapevine. And particularly taking into account the President’s statement when he appeared before Parliament that he intends to bring a law as to how, going forward, State interests in various assets will be disposed of. So, we are hoping that until that law comes to this House, the Damang Gold Mine will remain the property of the State. And in that regard, Mr Speaker, Ghana is also a gold mining owner.

However, Mr Speaker, there are more gold mining companies which are not owned by the State. So, in conclusion, we need figures. What is the cost of the amendment to the State? We need the financial impact analysis even though we know that now we own the Damang Gold Mine and it is not going anywhere. But we need the figures here.

Thank you very much, Mr Speaker, for indulging me.

Mr First Deputy Speaker: Yes, Minority Leadership.

Second Deputy Minority Whip (Mr Jerry Ahmed Shaib): Mr Speaker, thank you very much for the opportunity.

I made a few observations. The first one is the rush at which we bring such Motions and such Bills for them to be considered. Mr Speaker, we were in this same House in 2025, when this was 1 per cent. And there was this rush, as if those who were previously in government were sleeping. We came in to ask for 3 per cent without doing any serious engagement. And whenever we do so, then we come under Order 169(1), asking that this be elapsed so that we would not have comprehensive consideration of the Bill or Paper that has to be laid. They always come in under a certificate of urgency.

Mr Speaker, even today, we are doing it. Are we expecting the Damang Gold Mine to go to an individual or a certain company which belongs to the Government? Under normal circumstances, nobody has to be against any reduction in any tax. Nobody, Mr Speaker. And from a very honest point of view, I see no reason any well-meaning person should be against the reduction in any tax. But where they want us to believe that the reduction is going to be to the benefit of one major person or company, then we should be worried against the background that the Damang Gold Mine, which belongs to the Government, is to a

larger extent about to be reverted to an individual.

Mr Speaker, we believe that this is not a bad step. We are only advising, especially the Ministry of Finance; they keep rushing here with all manner of Papers, without solid consultation. And then they come back and do a U-turn. We are also aware of the lithium. We hope that this one, they will not come back and do a U-turn.

Mr Speaker, with this, I thank you.

Mr Ampem: Mr Speaker, I want to thank you and Hon Members for supporting this amendment. The amendment is timely, and it is in the interest of the mining sector. If you recall, exactly a year ago, on 13th March, 2025, the Minister for Finance brought a memorandum to amend the Growth and Sustainability Levy. Colleagues have spoken about that. At the time, the levy was 1 per cent, and we came to increase it to three per cent. The reason for the increase, was that the price of gold had shot up, and the people of Ghana, who are owners of these natural resources, were not getting enough advantage. There was no windfall tax in place, and we were not benefiting from the huge profits that the mining companies were making. So we came to this House, and this House supported the amendment to increase the levy from 1 per cent to 3 per cent.

During that presentation, the Minister for Finance said we were doing so because, as a country, we did not have any windfall tax, so it was important that

we introduce that amendment so that we can take advantage of the huge profits that the companies were making. If shareholders are making a profit, owners of the resources must also benefit from those resources. The Minister for Finance promised that the Government will come up with a mechanism, a windfall tax process, so that any time the prices of gold go up and mining companies are making super profits, the Ghanaian people also benefit from that.

Subsequently, the Minerals and Mining Royalty Regulation was laid in this House. Mr Speaker, I have been told that it matures today. So after today, the introduction of that Regulation, which has brought a new sliding scale, ensures that when the price of gold goes up, the rate also goes up so that Ghana can benefit from it. If it happens that the price of gold goes down, then we refer to lower rates. And that has been done by this House.

In fact, if the gold price is up to US\$1,900, the rate is 5 per cent. If the price of gold goes between US\$1,900 to US\$2,000, the rate increases to 6 per cent. If the price of gold goes up beyond US\$4,500, the rate peaks at 12 per cent. So, this is taking care of the windfall gains. So, we do not need to keep the Growth and Sustainability Levy at the elevated 3 per cent. So that is why we are bringing it back to the original 1 per cent, because that advantage is being catered for in the Regulation that was laid in this House.

So, Mr Speaker, it is as simple as that. That is why we are calling on us to

reduce the Growth and Sustainability Levy from the 3 per cent that we introduced in 2025 back to the original 1 per cent that it was. Because the sliding scale would take care of any gains that happen. So, those who were entertaining any fears that we are reducing the rate because of a particular company, no, we do not make laws to suit individuals. We are bringing this change so Ghana can take maximum advantage of its natural resources. We all know that we have been blessed with gold over the years—

Mr First Deputy Speaker: Hon Minister, conclude.

Mr Ampem: We have not taken enough advantage of the gold resources that we have. This arrangement will make it fair to mining companies, and it will also make it fair to Ghanaians, who are the owners of these natural resources.

Thank you very much, Mr Speaker.

5:15 p.m.

Deputy Minority Leader (Ms Patricia Appiagyei): Mr Speaker, thank you.

I am just looking at page 3 of the Report, and it mentions that under the sliding scale system, royalty payments are linked to prevailing price levels such that the royalty rate increases incrementally as the gold price rises.

Mr Speaker, I would like to know who determines that sliding scale and how they are going to work with that one? I need further explanation.

Mr First Deputy Speaker: Is it not the case that that is contained in the regulation that was brought to the House?

Mr Ampem: Rightly so, Mr Speaker. If we look at the regulation that this House has passed, it has the sliding scale in there, and that is what I was giving them; that we have it. I can share a copy. This House passed—in fact, the Committee on Subsidiary Legislation actually worked on this; it was laid and passed. So, it is not an individual or the Minister for Finance who will sit and determine the rate. The rate has been predetermined by this House through the Regulations. So, as soon as the price of gold kicks at a certain level, the rate applies. So, it is a given.

Thank you.

Mr Shaib: Mr Speaker, I have just been informed that the Regulation matures today.

Some Hon Members: Two days ago.

Mr Shaib: Mr Speaker, do they have a copy, because that is all supposed to be part of the Business for us to be well abreast. We are not the ones moving the Motion; we need to have copies. That is why the framers of the Standing Orders made it clear that we would have two days at least to look at all of this.

Please let us have a copy so we are well versed on the matters.

Mr Richard Acheampong: Mr Speaker, this is not before the Finance Committee. It is the work of the

Committee on Lands and Natural Resources, but we just wanted Members to know that the Regulation has been passed and that these are the scales. So, the bans are there, and we will operate within the bans. As and when the price goes up, then the percentage kicks in. If it comes down, the lower percentage will also kick in. So, I can send them a copy.

Ms Appiagyei: Mr Speaker, it is important that we all be in tandem with what is happening to the entire discussions that we are having, but we do not have it, and I believe that there is no need to rush through this thing. We are all happy that we are going to reduce the tax aspect of it. So, I believe that where we are at the moment, once we have discussed the Report, we are not going to continue with the passage because we are also looking at the numbers, and we should all be abreast with what is happening here.

So, we cannot continue with the Motions numbered 3 and 4. We believe that where we are, we want to study and then know exactly what is happening.

Thank you.

Mr First Deputy Speaker: Yes, but Hon Members, let us look at it this way. With the passage of the Regulation, if this law is not passed, reducing the tax to 1 per cent, the implementers will charge the rate per the Regulation and at the same time charge again the rate per the law, which is three per cent. This would be a disadvantage because the Regulation is there. It is now matured, and it would be implemented. Now, if

this law does not reduce the tax to 1 per cent, it means that they will charge under the Regulation and charge under the Parents' Act, which will be unfair to them, and that is why this Bill must be passed in order to reduce it to 1 per cent. So, at the conclusion of the debate, let me first put the Question.

Question put and Motion agreed to.

Growth and Sustainability Levy (Amendment) Bill, 2026 accordingly read a Second time.

Mr First Deputy Speaker: Yes, Majority Chief Whip.

Mr Dafeamekpor: Mr Speaker, may we take the Motion number 4 on the *Order Paper Addendum*?

Mr First Deputy Speaker: Yes, Minister for Finance.

MOTION

Suspension of Order 169(1)

Deputy Minister for Finance (Mr Thomas Nyarko Ampem): Mr Speaker, I rise to move that notwithstanding the provision of Order 169(1) of the Standing Orders which requires that when a Bill has been read a Second time, the Bill shall pass through a Consideration Stage which shall not be taken until at least two sitting days have elapsed, the Consideration Stage of the Growth and Sustainability Levy (Amendment) Bill, 2026 may be taken today.

I so move, Mr Speaker.

Mr First Deputy Speaker: Any seconder?

Yes, Hon Jerry Ahmed?

Mr Shaib: Mr Speaker, my Side of the House is of the view that we should be given the requisite period to study the Motion and to understand what is all involved. Against the backdrop that at about 12 noon today, the agreement was that we were just going to lay and subsequently come back—

Mr First Deputy Speaker: So, allow the Motion to be seconded when it is for the consideration of the House, then you can make your point.

Mr Shaib: Very well, Mr Speaker.

Mr Richard Acheampong: Mr Speaker, I second the Motion.

Mr First Deputy Speaker: Yes, the Motion is moved and seconded. It is for the consideration of the House.

Mr Shaib: Mr Speaker, I was trying to make the point that it would be proper for the House to defer considering this Motion against the backdrop that we had agreed that we were going to take it on a subsequent date, and today was for the laying of the same, and for us to also have proper in-depth understanding of whatever is captured in this.

Mr Speaker, I feel that this is the way to go on this matter, especially since we agreed.

Mr Speaker, this is the only prayer I am making to you.

Mr First Deputy Speaker: Well, I have wrongly been made aware that out of the engagement, there was a necessity to do it to avoid a situation where they would be charged under the Regulation and again be charged under the Parent Act, which would be the three per cent, if the three per cent is not immediately reduced to 1 per cent, which would disadvantage the large-scale gold producers. So, based on the outcome of the engagement, I am doing what I am doing. I do not know if it is to the contrary.

Mr Shaib: Mr Speaker, I do not know which engagement, but I will not stand here and lie to you respectfully. Mr Speaker, besides all of that, what is the rush? Why are we taking it today? So that there is a reduction from 3 per cent to 1 per cent today, and we cannot wait for Tuesday or Monday if this hollowed Chamber is Sitting. What is the rush?

Mr Speaker, I made reference to an observation that we have been here on several accounts. We rush some of these things, and we come back to say that we are doing a U-turn.

Mr Speaker, we are not giving adequate notice and adequate reports for people to peruse—

Mr First Deputy Speaker: Well, what is the sense of the House?

Mr Shaib: Mr Speaker, they do not even have the numbers as well. They do

not have the numbers to make a decision on this matter.

Mr First Deputy Speaker: Well, let me hear from the available Leader.

Mr Ampem: Mr Speaker, you made an important point, but at the time they were engaging. So, they did not pay attention to what you said. So, I want them to listen to this, and I know they will agree with why it should be taken now.

Mr Speaker, what it is, is that this House has already passed the Regulation. It came here, it went to the Committee on Subsidiary Legislation, it was laid, the number of days has been achieved, and it has passed. Now, what it means is that currently the gold price is elevated above GHC5,000. It means they are going to pay 12 per cent. If we leave the current law as it is, the Growth and Sustainability Levy will also be paid by the mining companies at three per cent, and they will be affected. So, we say because the regulation has passed, we are appealing to Parliament to reduce the Growth and Sustainability Levy back to the original 1 per cent, so that they do not pay here and pay here. So, this is all we are talking about. That is why it is important that we reduce the rate today, so that it will help them. That is why we are appealing to them to let us work together. It is a simple one-line amendment. During their time—

Mr First Deputy Speaker: Hon Members, I think my conscience is clear that we are doing something that will confer benefits to Ghanaians. There is no

point in having the two laws running concurrently, and then the producers will be taxed under the Regulation at the same time the Parent Act.

5:25 p.m.

Mr Michael Kwasi Aidoo — *rose* —

Mr First Deputy Speaker: Hon Member, are you up on a point of order? What is your point of Order?

Hon Member, at the time you were up, I was speaking as the Speaker of Parliament and you are still up. That is why I am asking you whether you are on a point of order against the Speaker?

Mr Aidoo: No, Mr Speaker.

Mr First Deputy Speaker: Then respect the rules. The rules are very clear that any time Mr Speaker is on the Floor, if you stand up, it means you are up on a point of order against the Speaker. That is the clear rule. The rules say when the Speaker is speaking, every other person must remain silent.

Mr Aidoo: Mr Speaker, I believe it will be right that we make the Growth and Sustainability Levy sliding. This is because in the situation where the prices of gold move from US\$5,000 to US\$2,000, it means that if we change the percentage to 1 per cent, then we are going to lose. So, it has to be sliding so that when it goes up, the Growth and Sustainability Levy too can adjust the same way so that the country benefits from the revenues that we need.

Mr First Deputy Speaker: Yes, but we are at a stage where we are considering a procedural Motion. This Motion is just procedural. So, you do not make a substantive argument when you are considering a procedural Motion. The Motion is to waive the three-day notice. So, when we come to the Consideration Stage, then you can make your point and even proffer an amendment.

Question put and Motion agreed to.

Resolved accordingly.

Dafeamekpor: Mr Speaker, may I pray that we take the item numbered 5 on the *Order Paper Addendum II*.

BILL — CONSIDERATION STAGE

Growth and Sustainability Levy (Amendment) Bill, 2026

Clause 1 ordered to stand part of the Bill.

Mr Richard Acheampong: Mr Speaker, we have an amendment for the Schedule, category B.

Mr First Deputy Speaker: Yes, that is the proposed amendment. That is the only clause. We put the question and the question has been taken. We are now going to the Long Title. It is one-line amendment.

Mr Richard Acheampong: I want to be clear in my mind that we have changed the rate from 3 per cent to 1 per cent.

Mr First Deputy Speaker: That is the proposed amendment on the *Order Paper*. That is the proposed amendment; the House does not have any amendment. I will put the question and after this, I will go to the Long Title of the Bill.

Mr Dafeamekpor: Mr Speaker, I get the concern of the Vice Chairperson of the Committee. The said amendment is not advertised. I think that is the difficulty that he has. If it has been carried, then —

Mr First Deputy Speaker: Hon Members, amendment on the Bill reads,

“Schedule to Act 1095 To Be Amended.

The Growth and Sustainability Levy Act, 2023 (Act 1095) is amended in the Schedule by

(a) The substitution for the second row, of

Category B	
Mining companies and upstream oil and gas companies.	1% of gross production.

That is the amendment on the Floor which has been carried. Which other thing are we talking about?

Long Title ordered to stand part of the Bill.

Mr First Deputy Speaker: That brings us to the end of the Growth and

Sustainability Levy (Amendment) Bill, 2026.

Mr Dafeamekpor: Mr Speaker, may I pray that we take the Motion numbered 6 on the *Order Paper Addendum II*.

MOTION

Suspension of Standing Order 172(1)

Deputy Minister for Finance (Mr Thomas Nyarko Ampem) (MP): Mr Speaker, I beg to *move*:

That notwithstanding the provision of Order 172(1) of the Standing Orders which requires that when a Bill has passed through the Consideration Stage, the third reading thereof shall not be taken until at least one sitting day has elapsed, the Motion for the Third Reading of the Growth and Sustainability Levy (Amendment) Bill, 2026 may be *moved* today.

Vice Chairperson of the Committee (Mr Richard Acheampong): Mr Speaker, I second the Motion.

Question put and Motion agreed to.

Resolved accordingly.

Osahen Afenyo-Markin: Mr Speaker, this Bill that is before us, Growth and Sustainability Levy (Amendment) Bill, 2026, on the face of it, one may think that it is offering some relief to the mining sector. But Mr Speaker, the Motion which is seeking to pray for leave to

waive the required period of notice so that we move into Third Reading today must be looked at with a lot of caution. I say so because in the wisdom of the drafters of our rules, this provision requires that we pause and give ourselves some time so that in the event that any important matter arises, a Member can use the rules to apply for a Second Consideration.

Mr Speaker, the Bill was introduced today and as it is, it is being done under certificate of urgency. On the face of it, the impression is that we are rather reducing some taxes and it is a good thing. That is how it appears to be on the face of it.

But there is a mischief to it and I will point out the mischief why we should not rush for a Third Reading now. Mr Speaker, you may recall that there is a Minerals and Mining Regulations 2025, Mining Royalty Regulations, 2025 (L.I. 2501) that was referred to the Committee on Subsidiary Legislation.

5:35 p.m.

Mr Speaker, in this regulation, there is a new concept that has been introduced by Government. What it is doing is more or less shutting the mining industry by way of this so-called principle or concept of scaling up. If we pay due attention to the new Regulations, what Government is trying to do is to use this Bill to mitigate it, but it does not cure the mischief, and our bilateral partners have raised this serious concern with Government.

What Government is doing is to create the impression that we are now going to reduce taxes or levies in the mining industry to compensate for the imposition of this scaling up of levies because there is some surge in terms of the price of gold. Mr Speaker, our partners have raised serious concerns. South Africa, Canada, the United States of America have come together to raise concerns that what we are doing under the Regulation, by that singular act is shutting the door on investors. It would drive away investors who would see other alternative avenues in Côte d'Ivoire or South Africa.

Therefore, I would want to make the following observations with one aim; get Government to re-look at this and not to rush for a Third Reading so that we would all go and reflect, and compare the numbers. Are they really solving the problem with this tax rebate that they are introducing? I see it as a mitigation. But, Mr Speaker, with what I know, which I would want *Hansard* to record, is that it will not solve the problem. It will make Ghana unattractive for investment.

So, I would want to proceed with the following three points to guide the House not to proceed with this Third Reading. With what we have in the—
[Interruption] What is wrong with the procedure? Hon Dafeamekpor, I know the procedure. He is asking for a waiver for us to go to the Third Reading. What is a compelling argument? Wait. Let us get into some intellectual discourse with respect.

Mr Dafeamekpor: It is very wrong.

Osahen Afenyo-Markin: It is not. He has come with an application unsupported by anything to ask Mr Speaker to grant waiver for him to do the Third Reading. I am up on my feet to come out with why we should not do the Third Reading. If he does not want me to talk and he wants to use some 30 people to pass a law to take a decision in this Chamber, he can go ahead and take the decision. But *Hansard* will record that this is a super Majority that would want to frustrate the Minority.

Mr Dafeamekpor: Mr Speaker, he has spoken for 10 minutes.

Osahen Afenyo-Markin: Why? Is he limiting how many minutes I should speak?

Mr Speaker, if we look at the Minerals and Mining (General) Regulations, 2012, the Legislative Instrument (L. I.) that also matures today; we know what they are doing. It matures today and because of the pressure they want to introduce this mitigation. Mr Speaker, I would want to make these submissions to prove a point that they are not actually solving the problem.

Our country has witnessed a dramatic deterioration in its standing as a mining investment destination. In the global mining perception index, Ghana dropped 46 in 2024 to 60 in 2025. The global best practice index places Ghana near the bottom of the global rankings. Mining capitals are increasingly being redirected

to competing jurisdictions including Peru, Colombia, South Africa, Côte d'Ivoire and Mali. An Ernst and Young Ghana report commissioned by stakeholders in the mining industry and brought to the attention of Parliament's Committee on Subsidiary Legislation highlights anticipated job losses, declining capital inflows and reduced investor confidence if the sliding scale royalties are implemented and without accompanying relief or incentive measures.

Mr Speaker, like I said before, because of these concerns that were expressed when the Committee on Subsidiary Legislation met, Government is bringing this as a measure to offer some relief, but it does not solve the problem. The Minority takes this independent assessment seriously. Through our Chairperson on the Committee on Subsidiary Legislation and the information given to us, Mr Speaker, we take this assessment seriously.

Ghana expects approximately US\$7 billion in mining investment in the period through 2028. Investment of this scale supports local businesses, local content initiatives and employment. Policies that undermine investor confidence jeopardises these anticipated inflows. The policy I am referring to is the very regulation they have introduced.

One, the risk of massive job losses. Our position as Minority, as articulated by our respected Colleague Mr Patrick Yaw Boamah, is that the net economic effect of this new royalties framework

could be the loss of close to one million jobs, and we are looking at the entire value chain. The logic is straightforward. If investors reduce or exit capital commitment because the fiscal burden is prohibitive, the downstream effect on employment, income tax and corporate taxes will far outweigh any short-term revenue gains from the higher royalties.

So, Mr Speaker, the point is that if they are saying they are even reducing taxes, but these upscale royalties are very high, what they are doing by way of relief is of no effect; it becomes otiose. The investors will still go because they do not find this incentive sufficient enough to keep them here. It is like we are giving them GHC1 and taking GHC5 from them. It is not done that way.

Mr First Deputy Speaker: Yes, but Hon Minority Leader, do you not agree with me that based on the argument that we just advanced, it will not be proper to still keep the tax at 3 per cent, and it will be a mitigation measure if it is brought back to the original 1 per cent as promised by the Minister?

Osahen Afenyo-Markin: Mr Speaker, you know that I am against taxation, and I am on all fours in agreement with that position. My answer to you is in the affirmative. I agree that the appropriate thing is to go down to the 1 per cent.

But all my argument is anchored in the very mischief that this law is trying to cure. I am saying that underneath this good gesture is a fundamental policy misdirection that our partners have pointed out. In fact, the very law that

they introduced where all these concerns were expressed, matures today. It is not a coincidence that Government is trying to get this Bill passed today. They want to assure our partners that their concerns have been addressed. I am saying that no, let us interrogate the numbers and weigh them. Are they saying that if they pass this law, it will be sufficient to mitigate the concerns that have been expressed?

Mr Speaker, let me move to my second point. We have three points as a Caucus—

Mr First Deputy Speaker: Hon Minority Leader, I believe half a loaf is better than none.

5:45 p.m.

If they raise a concern about the regulation when the law is still at 3 per cent, for me, I still maintain that it would, in a way, be a bit of a mitigation measure if this is reduced from 3 per cent to 1 per cent. This Bill before us, all that it is seeking to do is to reduce from 3 per cent to 1 per cent. So, when we are talking about the Second Consideration, I was taken aback because all that it seeks to do is to change 3 per cent to 1 per cent. That is all that the Bill is talking about.

Osahen Afenyo-Markin: Mr Speaker, with respect, I am in agreement with you that half a loaf is better than none. I also understand the steps that the Government is taking because the Government wants to respond to their concerns. But Mr Speaker, at the heart of my argument and this Side of the House

is whether or not this step being taken commensurate with the grave concerns. Mr Speaker, that is what I would want Colleagues opposite me to appreciate. I am not done; I have three arguments. Mr Speaker has asked me important questions, and I have answered him. The question is whether or not this half a loaf being offered would be sufficient to mitigate? Let us lay bare why we hold the view that the mitigation, as has been proposed, 3 per cent to 1 per cent, will not solve the problem, and when we are done, the Government can have its way. We would want to put the argument for *Hansard* to record that if they do not want us to go to Second Consideration and they want to still do the waiver, let us make our point. We will be remembered for having made our point.

So Mr Speaker, let me advance the second and the third argument, then I will rest my case and not apply for Second Consideration. *[Interruption]* Hon Ampem, I would not be brief. If your boss takes this seriously, he would have come himself. If I subject you to interrogation, you cannot survive. So, let me finish my work. So, do not—*[Interruption]*—then come and argue. Mr Speaker, he is our junior in this Chamber. The fact that he is the Deputy Minister does not mean he should come—He wants to challenge his Leader?

Mr First Deputy Speaker: Hon Minority Leader, I appreciate your concern because you missed the Second Reading stage of this particular Bill. You would have placed all your points at the Second Reading, but you missed it. So, we really appreciate—That is the point.

Osahen Afenyo-Markin: Mr Speaker, overly tolerating the Minority is part of democracy. *[Laughter]*

Mr First Deputy Speaker: But we have given you the opportunity to sufficiently make your point.

Osahen Afenyo-Markin: Mr Speaker, let me finish points two and three and close the matter.

Mr Dafeamekpor: Let the record reflect that today, the Minority Leader agrees that the Majority Chief Whip is over-tolerant. *[Laughter]*

Osahen Afenyo-Markin: Mr Speaker, if it continues that way, we will be happy, but not for today. It should not just be for today. So, Mr Speaker, our point is that the Government cannot claim to be open for business while simultaneously making structural decisions that send contradictory signals to both local and international investors. This, in our view, is fundamentally inconsistent, and we want to draw attention to this.

Mr Speaker, second, there is pressure from our major trading partners. We also note serious concern that Ghana faces sustained pressure from the United States of America (U. S. A.), the United Kingdom (U. K.), China, Canada, and Australia to hold this planned royalty increases, with all five expressing concerns about the adverse effect on some of the world's largest mining companies operating within Ghana. Mr Speaker, we believe that this multilateral diplomatic pressure is unprecedented

and signals the severity of the concerns in the international investment community. The Government must proceed with a lot of caution.

Mr Speaker, our third point is that we looked at the governance deficit in the lithium subsector. Mr Speaker, consistently, we have raised objections to the handling of the Lithium Agreement with Barari DV Ghana Limited. Mr Speaker, the Ranking Member of the Committee on Lands and Natural Resources, Hon Kwaku Ampratwum-Sarpong, has argued that the arrangement undermines public interest and weakens confidence in Ghana's resource governance framework. The Government's own indecision on this matter, including the December 2025 withdrawal of the revised Lithium Mining Agreement from Parliament for further consultation, demonstrates the inadequacy of the consultation and impact assessment processes that preceded these regulations. It is the reason we think that this law should not be rushed with a view to doing any mitigation when the fundamental problem still subsists, and this does not, on any scale, help to cure it.

Mr Speaker, finally, we hold a view again that there are some legal and constitutional questions. Parliament's Committee on Lands and Natural Resources has called for amendments to the Minerals and Mining Act, 2006 (Act 703) to create a proper legal foundation for the royalties above 5 per cent. The Committee Chairperson, Hon Collins Dauda, pointed out that charging different companies different royalty

rates without clear legislative backing creates discriminatory treatment and legal vulnerability. This came from the respected senior Colleague, Hon Collins Dauda, reinforcing the position of the Minority.

Mr Speaker, we share in this constitutional concern. This Regulation may be laying the groundwork for legal challenges. We emphasise that it may be laying the groundwork for legal challenges that can embarrass our country. International arbitration can be triggered against us because, Mr Speaker, most of the mining agreements are lease agreements, and these multinationals, every now and then, we all know—

Mr First Deputy Speaker: Hon Minority Leader, you seem to be shifting from the Bill under Consideration. You are now speaking about mining agreements.

Osahen Afenyo-Markin: Mr Speaker, sorry about that, but I am simply connecting—There is a direct nexus between this Bill and the Regulation. Mr Speaker, maybe Colleagues do not know about this, and they are not privy to what the Minister is doing. This is not being placed on nothing. It is being placed on something; the something is the minerals regulation. The Government is not just coming out all of a sudden as Father Christmas to tell the mining companies that it is giving them a reduction from 3 per cent to 1 per cent. It is because there is a fundamental challenge. Mr Speaker, if I do not speak to the fundamental challenge and I move straight away to oppose, then there will be nothing to oppose.

Mr First Deputy Speaker: Minority Leader, conclude for me.

Osahen Afenyo-Markin: Mr Speaker, I am concluding. Already, we know what has happened in the Bogoso-Prestea case, where Blue Gold Holdings and Future Global Resources have threatened arbitral proceedings seeking a minimum of US\$1 billion in damages against the Government. Mr Speaker, with all that is said, I would want to say that there is wisdom in consulting a pillow. We should not rush for the Third Reading today.

5:55 p.m.

The Government, having listened to the views of the Minority, which clearly point out to Government that this law does not sufficiently mitigate all the risk involved in this Regulation, can come back tomorrow and say that it has heard these views and after consultation and after paying attention to its pillow, would want to redraw the regulation and look at a much more productive approach in generating revenue from the mining sector. Mr Speaker, that is all we seek to do.

That said, Mr Speaker, I would want to rest my case and leave the application to them to pursue, but we have nothing useful to add.

Mr First Deputy Speaker: Thank you very much, Minority Leader.

Minority Leader, what I want to say is that the Regulation has come into force and so, to amend the Regulation is a different procedure altogether. But what

is happening is that because the Regulation is in force, whatever scale that is in the Regulation becomes applicable. You rightly pointed it out that this, in a way, may be a mitigation measure and we understood your points. I only have to plead with you that we give this mitigation in the interim. Because when the Minister came to change the law from 1 per cent to three per cent, he promised that other measures are being put in place and that once those measures are in place, he would come back to reduce it back to 1 per cent. Now the measures have been put in place in the Regulation and it is before us to reduce it back from 3 per cent to 1 per cent. I think it is a mitigation measure that we should give timeously to Ghanaians.

So, on this note, I will put the question on the procedural Motion.

Question put and Motion agreed to.

Resolved accordingly.

Mr First Deputy Speaker: Yes, Deputy Minister for Finance?

BILL — THIRD READING

Growth and Sustainability Levy (Amendment) Bill, 2026

Deputy Minister for Finance (Mr Thomas Nyarko Ampem) (MP) *on behalf of the Minister for Finance:* Mr Speaker, I beg to move:

That the Growth and Sustainability Levy (Amendment) Bill, 2026 be now read the Third time.

Mr First Deputy Speaker: Motion has been moved. Any seconder?

Osahen Afenyo-Markin — *rose* —

Mr First Deputy Speaker: Yes, Hon Minority Leader?

Mr Richard Acheampong: Mr Speaker, since we started, none of them has seconded a Motion.

Mr Speaker, I second the Motion.

Osahen Afenyo-Markin: Mr Speaker, he can second *subjectus*. Why do they want to make it a one-party Chamber?

Mr Speaker, we do not want to take your goodwill for granted. This afternoon, your posture is very commendable—[*Hear! Hear!*]—and if this posture continues, this Side will be in love with you. [*Hear! Hear!*]

Mr Speaker, but the Second Deputy Majority Whip should not create the impression that it is a one-Sided Chamber. When we advise and they do not take it, their masters, the CSOs, will bring them in line. They only listen to the CSOs. When we advise, they do not take it. The Deputy Minister for Finance is in a rush to pass the Bill. It is not a coincidence because he wants to mitigate something. He is under pressure that is why he wants to take this Bill at all costs today.

Mr Speaker, they should second their own Bill and carry the consequences.

Mr Richard Acheampong: Mr Speaker, I second the Motion.

Mr First Deputy Speaker: Hon Members, Motion moved and seconded. It is for the consideration of the House. This is a Motion for a third reading of the Growth and Sustainability Levy (Amendment) Bill, 2026. I will put the question.

Question put and Motion agreed to.

Growth and Sustainability Levy (Amendment) Bill, 2026 — *read the Third time and passed.*

Mr First Deputy Speaker: Yes, Hon Minority Leader?

Osahen Afenyo-Markin: Mr Speaker, they have 60 Ministers. Where are their Ministers? They were impatient. Their own Ministers could not wait to assist them to execute Government Business. Their own Ministers, they were very upset at them because they were pursuing Government Business.

If we are supposed to open the Constitution, if we take them into the law, look at their Backbench. It is the same Backbench they have taken for granted. They are not on board. They are not enjoying. Even recruitment, they are not giving them any. When it gets to Government Business, then they start writing names. They threaten the Backbench with the writing of names. What do they get? And they bring them to be shouting “*hear, hear*” Where are the Ministers?

Today, they are relying on Backbench. The Backbench that they share things and do not give anything. They do not give them anything. It is Friday; the Ministers are enjoying and they are here doing Government Business.

Mr Speaker, God bless you for doing Government Business.

Mr First Deputy Speaker: Thank you.

Hon Members, the Growth and Sustainability Levy (Amendment) Bill, 2026 is duly read for the Third time and passed. [*Hear! Hear!*]

Yes, Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, I believe that— [**Osahen Afenyo-Markin:** Why are you so tolerant today?] Because Mr Speaker has advised that I should be. [*Laughter*]

Mr Speaker, it is 6:00 p.m., and today is Friday. We have not done five hours and I think the record will bear me out that we have not done exactly five hours and therefore, I would move that the House be adjourned till Monday at 10:00 a.m.—

Mr First Deputy Speaker: We have done five hours. We started Sitting before 1:00 p.m.

Mr Dafeamekpor: Very well. Then, Mr Speaker, we are entirely in your hands.

Mr First Deputy Speaker: Yes, Hon Second Deputy Minority Whip?

Mr Shaib: Mr Speaker, I think that we have done about five hours.

But Mr Speaker, honestly, I think that the posture today needs commendation and I need to let you understand that today you have taken the literalist approach in dealing with matters.

Mr First Deputy Speaker: Not the purposive approach.

Mr Shaib: No, today it has been— When you are dealing with the purposive too, sometimes it is dangerous. But we commend you highly today.

Mr Speaker, if some of the Ministers can even learn from you, for a Minister to be programmed to come and answer Questions of this House and there is no regard whatsoever for this House, Mr Speaker, for you, for his own Chief Whip, for Leadership, my respected Minority Leader, or all other Members, then Mr Speaker, we are in trouble. We need to let His Excellency the President understand that the 1-3-3 is in danger. Danger is looming even with the ministers. They cannot understand the 1-3-3 to even come and sit here for an hour or two to respond to Questions.

Mr Speaker, today I have been very broken. But I pray that Tuesday we come back as a unit. Mr Speaker, look at the Backbenchers. They are here. My Backbenchers have been here. Mr Speaker, even you do 1-1-3 shift. Mr Speaker, may you live long.

Mr First Deputy Speaker: Hon Members, it is indeed a fact that we have done more than five hours and fortified by Standing Order 56(2), I will proceed to adjourn the House without a Motion.

ADJOURNMENT

The House was adjourned at 6:08 p.m. till Monday, 16th March, 2026, at 12:00 noon.

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Editor's Note

This *Official Report* was adopted by the House on 24th March, 2026.